



ANNUAL REVIEWS **Further**

Click [here](#) for quick links to Annual Reviews content online, including:

- Other articles in this volume
- Top cited articles
- Top downloaded articles
- Our comprehensive search

Middle Eastern Law

Chibli Mallat^{1,2} and Mara Revkin³

¹Middle Eastern Law and Politics, University of Utah College of Law, Salt Lake City, Utah 84112; email: cmallat@gmail.com

²European Law, Université Saint-Joseph, Beirut, Lebanon

³Yale Law School, New Haven, Connecticut 06511

Annu. Rev. Law Soc. Sci. 2013. 9:405–33

The *Annual Review of Law and Social Science* is online at <http://lawsocsci.annualreviews.org>

This article's doi:

10.1146/annurev-lawsocsci-102612-134018

Copyright © 2013 by Annual Reviews.
All rights reserved

Keywords

Middle Eastern law, Islamic law, case law, calques, canon, legal practice

Abstract

This article maps Middle Eastern law in some of the thousand plateaus where it operates/operated: Mesopotamian law, Roman provincial law, Islamic law, and post-colonial law, with layers within each, such as Elephantine law in Egypt and Jewish and Christian law in Islam's classical age, as well as new worlds of law, such as Byzantine and Ethiopian law, in which scholarship about interaction with other layers of Middle Eastern law is either inexistent or just starting. The focus is directed as much as possible to the extant documentation in the legal record that most affects people's lives: court decisions. For the modern period, we survey, from the point of view of the legal practitioner, lawyer, or judge, the various bodies of case law and codes in the everyday practice of the Middle East lawyer. A legal family analogous to the common or civil law traditions, Middle Eastern law has emerged as a coherent and active discipline that is increasingly a subject of inquiry for historians, social scientists, and others outside of the legal profession. This article presents the field for more sustained attention from lawyers, judges, and law professors.

CONSTRUCTS

Mapping the Terms Middle East and Middle Eastern Law

Around 1990 CE,¹ Middle Eastern law emerged as a scholarly construct, standing as a replacement for or in complementarity, symbiosis, and occasionally rivalry with Arab law, Oriental law, Muslim or Islamic law (referred to generally as *shari'a* but better known as *fiqh*² among specialists), North African law, Near Eastern law, and less commonly, Southwest Asian law.

No less meaningfully, Middle Eastern law competes and interacts with the national law of many countries that mostly came of age as nation-states in the aftermath of the First World War (see **Figure 1**).

As a construct, Middle Eastern law is of much more recent provenance than the concept of Middle East, itself attested for possibly the first time as late as 1902 (Mahan 1902).³ Although some works in the 1950s refer in their title to the law of the region (e.g., Khadduri & Liebesny 1955), it was only in the 1990s that legal scholarship started featuring Middle Eastern law institutionally.⁴ This followed the increased use of “the Middle East” in the vernaculars⁵ and the proliferation of journals,

think tanks, and scholarly centers throughout the world with “Middle East” in their title.⁶ “Middle Eastern law” appears increasingly in the mastheads of legal scholarship centers and journals,⁷ but there is more to the name than etymology or its interaction with Arab, Islamic, or Oriental laws. The question is whether the field of Middle Eastern law stands up to scrutiny as a coherent legal discipline, more ambitiously as a legal family like common law or civil law, with corresponding roots in the daily life of those in the large region it covers. This article suggests that despite the term Middle Eastern law having come into usage relatively recently, the corpus to which it refers has deep historical roots and has functioned as an autonomous and coherent field of germane laws for thousands of years. Although the field contains within it different strands of pre- and post-Islamic Christian and Jewish legal traditions, the close resemblance in substance and form across these different traditions gives rise to a common, identifiable brand of distinctly Middle Eastern law.

We argue that Middle Eastern law is a discrete legal family that is distinguished from other bodies of civil and common law by

¹For transliteration in the present article, we adopted the most common use in the discipline, minus the diacritics, which were retained only in the bibliography. Capital letters and the occasional drop of the al- in al-ta'rif is for aural or reading convenience. Only dates from the Christian Gregorian calendar (renamed Common Era, CE, with BCE acronym for Before the Common Era) are mentioned, except for some references to the Muslim calendar (AH for Anno Hegirae), which starts in 622 CE.

²For a discussion of the three terms for law in the Middle East, *shari'a*, *fiqh*, and *qanun*, see Mallat (2007), ch. 2: “The Formation of Middle Eastern Law” (dividing the periods of Islamic law along the three terms as markers of a significant transformation of the legal disciplines).

³“The Middle East, if I may adopt the term which I have not seen. . .” (Mahan 1902, p. 38).

⁴One should note, however, Herbert Liebesny's (1975) excellent small case-law textbook entitled *The Law of the Near and Middle East*.

⁵Examples are Arabic (*sharq awsat*), Persian (*khavar miyaneh*), Hebrew (*mizrab tikhon*), and Turkish (*Orta Dogu*). Note that Arabic, Persian, and Hebrew have no capital letters, which

was also the case for Ottoman Turkish before Mustafa Kemal Atatürk's linguistic reform in the 1920s.

⁶There are few Middle Eastern countries without some Middle East center for policy or scholarly studies. Two main reference journals in the United States are the *Middle East Journal* (founded in 1947) and the *International Journal of Middle East Studies* (launched in 1968 by the Middle East Studies Association of North America, the largest academic organization for the field in the world). A major daily pan-Arab newspaper is called *al-sharq al-awsat*; it was launched in London in 1978 and is printed in over a dozen Arab cities.

⁷Examples are the Centre of Islamic and Middle Eastern Law, founded in the Law Department of the School of Oriental and African Studies at the University of London in 1990, which has published since 1994 *The Yearbook of Islamic and Middle Eastern Law*; the *Middle East Commercial Law Review*, launched by practitioners in London at Sweet and Maxwell's in 1995; the journal *Middle East Law and Governance*, editorship of which has been based in the Law Department of the University of Toronto since 2008; and the *Berkeley Journal of Middle Eastern & Islamic Law*, based at Boalt Hall at the University of California at Berkeley since 2008. Perhaps most telling for the emergence of the field was the establishment in 1998 at Yale Law School, under the leadership of Owen Fiss, of the annual Middle East Legal Studies Seminar (Whitaker 2005).

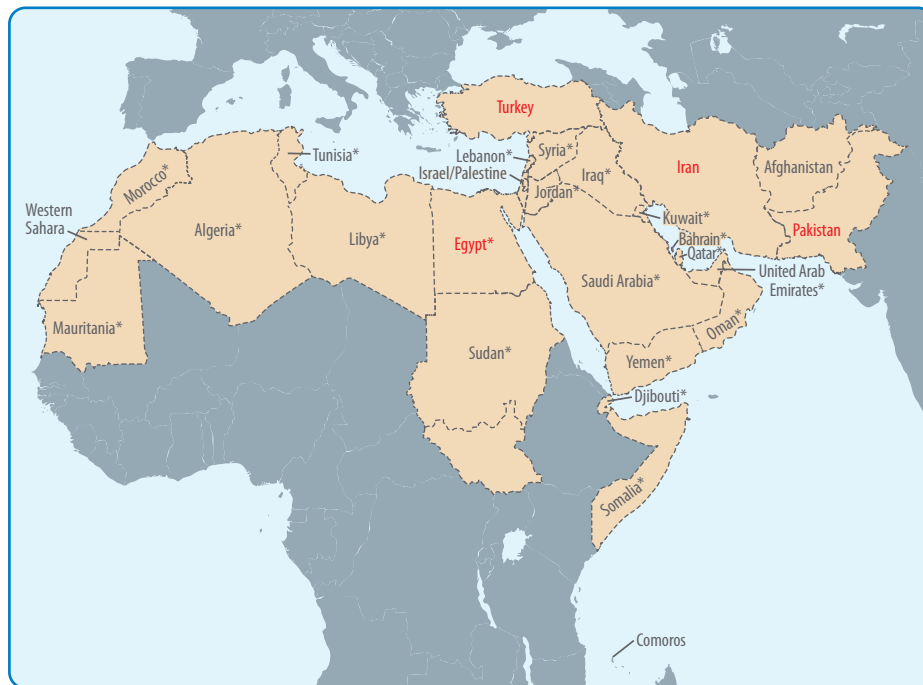


Figure 1

Map of the Middle East in 2013. An asterisk (*) indicates that a country is a member of the League of Arab States. Pakistan, Egypt, Iran, and Turkey (highlighted in red) have the largest populations with ~176 million, ~85 million, ~75 million, and ~75 million people, respectively.

(a) its continuation of legal practices and methods dating back to the time of Hammurabi's Code (see **Figure 2**), (b) the influence of a uniquely rich Islamic legal tradition, and (c) the evident incorporation of major aspects of Western law in the contemporary world, ranging from the adoption of constitutions to commercial law daily practice. Although there are many structural similarities between Middle Eastern law and Western law—for example, the logic of derivation and the role of precedent—what differs between them is the contextual landscape of historical and civilizational factors that have shaped the style and form of Middle Eastern law, carried through several languages (like the variety of languages in the civil law tradition) and the continuity of social-legal calques.⁸ But there is nothing fundamentally different about

the study of Middle Eastern law in comparison to that of other distinct families of law, and it should be approached by scholars and practitioners in ways similar to how they deal with other major legal systems in the world.

Historical Power Struggles in the Middle East

Although Middle Eastern law and Islamic law are often conflated, Islamic law was a relative latecomer—emerging not until the early seventh century as part of a larger body of Middle Eastern law that originated in the first civilizations to produce written documents.

of Middle Eastern law to date. The best example is the “an eye for an eye, and a tooth for a tooth” *lex talionis* formulation found in Hammurabi's Code (Mesopotamia/Iraq ca. 1750 BCE, para. 196, 200), the Bible (Palestine/Israel ca. 1200 BCE; Exod. 21:23–25, Lev. 24:18–20, Deut. 19:21), and the Qur'an (Hejaz/Saudi Arabia ca. 620 CE, 5:45).

⁸Calque is an essential concept for understanding both the interaction between various legal milieus and the continuity



Figure 2

Hammurabi's Code, ca. 1750 BCE. The famous Code of Hammurabi is inscribed on the front of the stela under the figure of King Hammurabi receiving the Code from the Babylonian God Marduk (panel *a*) and on the back of the stela (panel *b*). It consists of a prologue, an epilogue, and 282 articles. Articles 196 and 200 feature a famous calque for the "an eye for an eye, and a tooth for a tooth" *lex talionis*, which is replicated verbatim in the Bible and in the Qur'an (see n.8 above). The stela is now in the Louvre Museum in Paris. [Reproduced with permission from the Musée du Louvre and Agence Photographique de la RMN-Grand Palais.]

The development of Middle Eastern law is deeply intertwined with the rise and fall of the successive empires that shaped the political landscape of the region and its various administrative and governing institutions. The earliest known civilizations in the world emerged around 3500 BCE in Mesopotamia (modern-day Iraq), which was home to the Sumerians (later known as Babylonians) and Assyrians. Indeed, by 4000 BCE, the Nile River valley of ancient Egypt had been unified under the pharaohs, paving the way for the diffusion of these civilizations throughout the Fertile Crescent, the west coast of the Mediterranean Sea, and the Levant. Beginning in the early sixth century BCE, a series of Persian states came to dominate the region but were eventually superseded by the Roman Empire (in the first century BCE) and later by the Byzantine Empire, which came to control the vast swath of territory spanning from the Balkans to the Euphrates River that passes through modern-day Turkey, Syria, and Iraq. The eventual weakening of the Byzantine Empire paved the way for the rise of a series of Islamic caliphates starting in the seventh century CE. However, the dominance of Arab-Islamic civilizations came to an end in the middle of the eleventh century, with the arrival of the Seljuk Turks, originating in Central Asia, who eventually conquered Persia, Iraq, Palestine, and the Hejaz (present-day Saudi Arabia).

The political landscape of the region was again transformed in the early fifteenth century with the rise of the Ottoman Empire, which unified the region under a single Sunni Muslim ruler for the first time since the Abbasid caliphs in the tenth century. At the same time, the connection between Shi'ism and Persia transformed present-day Iran into the center of an empire, which, under successive Safavid and Qajar shahs, was in constant conflict with the Sunni Ottomans after 1501. The Ottomans retained control over the largest part of the Middle East for 400 years, until the empire's dissolution in the aftermath of World War I into several nation-states. The Persian Empire was weakened decisively at the beginning of the nineteenth century by repeated encroachment

from Western powers, especially Britain and Russia, but it continued to play an important role through the emergence of modern Iran in the wake of a military coup in the mid-1920s, which morphed into the establishment of the Pahlavi dynasty. Iran's Middle Eastern influence, particularly on Shi'i communities across the Levant and the Arab Gulf countries, continued through the last Pahlavi shah and the Islamic revolution that removed him from power in 1979. These alternations of power and empire constitute the backdrop for the development of Middle Eastern law as a coherent and continuous field of study.

The Centrality of Case Law, or What Great Historians Tell Us

Legal scholarship of the Middle East was revolutionized by historians in a major discovery of unintended consequences. Building on years of archival work, André Raymond (1973–1974) based a major two-volume work about Egypt's late eighteenth-century economic and social history on court records that had been preserved in Cairo. Against the predominance of codes in the French Napoleonic civil law tradition and the secondary role of constitutions whose spirit was mostly honored in the breach by 50 years of dictatorial rule since the 1950s, Raymond's thorough examination of the court archives allowed him to reconstruct the foci of wealth of late eighteenth-century Cairene families and the trade flows uncovered by wills in archival probate decisions.

The sudden emergence of a new textual source of immense value to historians coincided with legal scholarship increasingly falling under the influence of the common law method, which was fueled by the spread of American judicial review and the United States' dominance over the international scene since the Second World War (Ackerman 1997, Terré 2001). The steady discovery of vast troves of legal archives in the region and the anchoring of the common law in case law combined inadvertently to compel an altogether new approach to the field of Middle Eastern

law, one based on case law produced by courts adjudicating disputes between private litigants or between a litigant and the state or its agent. Until recently, there was no case law in the study of the Islamic subset of Middle Eastern law across fourteen hundred years. Suddenly, cases forced themselves onto the center stage of Middle Eastern legal scholarship.

As more historians (in Arabic: Ziadeh 1983; in English: Nahal 1979, Marcus 1989), anthropologists (Rosen 1989, Mir-Hosseini 1993), and gender studies (Tucker 1998) and political science (Cannon 1988) scholars began to devote serious time probing the depths of court records, lawyers lagged behind, but they are starting to catch up. Until Raymond opened the gates of a Cairo legal archive, no one had spent serious time on what court cases have said. There were some remarkable studies on the judiciary, but they were based on secondary literature [e.g., Tyan 1960 (1938–1943), Shbaru 1982]. Since Salwa Milad's (1974, 1976) publication of samples from judicial archives in the Salihyya Najmiyya courts of Cairo, case law has been augmented by extremely rich documentation across the region, but we are still only beginning to reconstruct Middle Eastern, including Islamic, law, with many dots remaining to be connected across time and space. For example, the vast Persian world under the Safavids then the Qajars (1501 to the early twentieth century) has not yet yielded any court material, in stark contrast to the Ottoman Empire for which new discoveries are made yearly in cities ranging far and wide, small and large, in a curve stretching from Algiers to Belgrade. The Ottoman bureaucracy, like

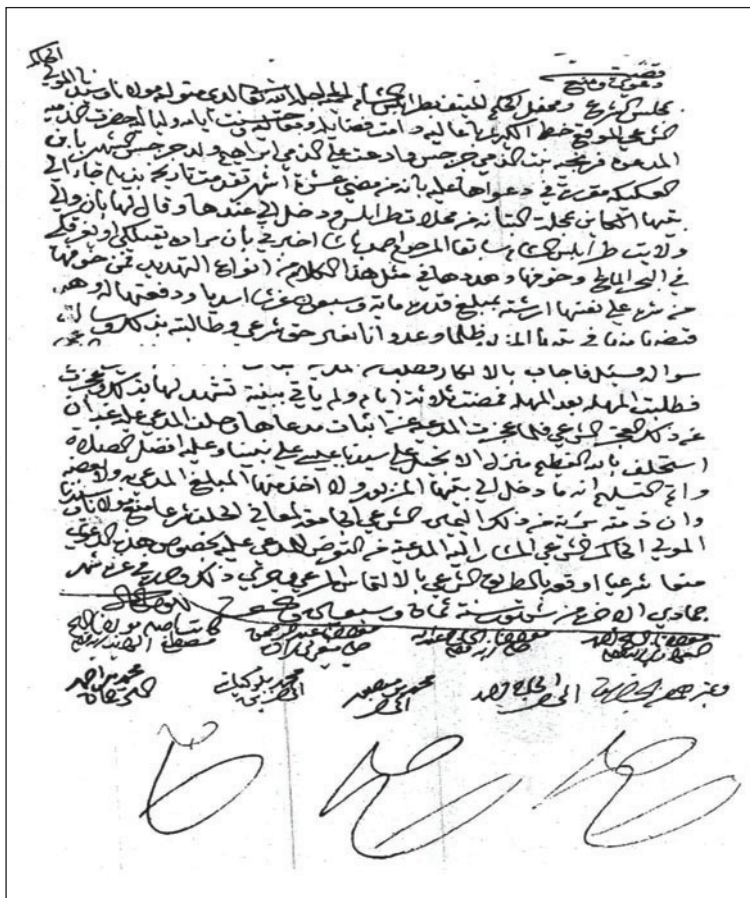
some of its Arab predecessors [Ibn Khaldun (d. 1406) 1978, pp. 224–25], was clearly concerned with keeping a well-honed judicial track record that included confirmations of agreements and settlements between parties, as courts doubled up as notaries public (Mallat 2007, pp. 64–66).

As a result, we have considerable collections of Ottoman-era court records from as far back as 1550 CE (see **Figure 3**). The language used in them in the middle of the sixteenth century was still Arabic, which dominates court reports in Arab-speaking or mixed areas, but the Turkish heart of the Empire, from the Balkans to Anatolia, delivered judgments exclusively in Ottoman Turkish by the end of the sixteenth century. The extant literature is now considerable. It forces an altogether novel view of the history of Middle Eastern law, a view pioneered by Ronald Jennings (1999).

Another trove found in the mid-1970s propelled the case-law recovery adventure to new heights. The discovery is historically important because it ended the scholarly perception that court record keeping was an innovative and exclusive Ottoman hallmark. From Jerusalem at the time of the late Mamluks at the end of the fourteenth century emerged a magnificent collection of legal documents in the Haram ('Asali 1983–1989, Little 1984), the Muslim compound in the heart of the old city where Jews and Muslims continue to carry on many of their most symbolic, often violent, disputes (Wasserstein 2001). Among the Haram trove were a few judgments that allow us to push back the date of the earliest Islamic law court decision to ca. 1390 CE, almost two centuries before

Figure 3

Franjiyyeh's extortion case from the Tripoli (present-day Lebanon) Islamic court in November 1667. The plaintiff Franjiyyeh, a Christian woman, accuses a man of extortion by claiming he would protect her from the sexual entreaties of the governor of the city. By the time the criminal complaint was lodged, the governor had passed away. The plaintiff failed to provide evidence of the extortion, and the court dismissed the case. The bracketed numbers in the translation are added to facilitate understanding of the formal structure of common Islamic court decisions, which have operated according to a stable legal calque for nearly a millennium, with documentation in almost identical format available from the thirteenth century to the middle of the nineteenth century. Note that in [4] it is not clear whether the word used is *yugabbiluki*, kiss you, or *yagtuluki*, kill you. [Reproduced with permission from Tadmuri et al. (1982, p. 153). For further contextual explanation, see Mallat (2007, pp. 66–86).]



[1] A case of action and injunction

[2] In the court of law and good judgment in the presence of our master the fair judge in Tripoli-Syria – may God recompense him –, bearer of the above handwriting – long life to his virtues, may his days and nights be ever better, [3] appeared the Christian woman called Franjiyyeh, daughter of the Christian Jirjis, and she brought legal action against the Christian man Ibrahim, son of Jirjis, known as Ibn al-'Ukaika, [4] claiming in her action against him that he had, ten months earlier, come to her house in the neighbourhood of Tibbaneh, one of Tripoli's neighbourhoods, that he entered her house and said to her that the governor of Tripoli-Syria previously, the late Ahmad Basha, had told him of his wish to [kill/kiss?] her or else that he would drown her in the salted sea, and that he scared her and threatened her with sundry threatening words; and that, out of fear for herself, she bribed him with an amount of 170 piasters, that she paid them to him, that he took them from her in her house unjustly and under duress, without legal right, and she asked him [presently] to return the money; [5] requesting [the court] to put the question to him, [6] so [the judge] put his question [to the defendant], who denied [the allegation], [7] and the plaintiff was asked to prove her claims legally, and she demanded some time, then more time, until three days passed and she was unable to produce evidence proving her claim, and was unable to do so legally, [8] so when the plaintiff appeared unable to prove her allegations, [9] and the defendant swore after he was put to the oath in the name of God almighty the revealer of the Gospels to our lord Jesus, upon him and upon our Prophet best prayers and perfect salutations be rendered, and repeated that he had neither entered her aforementioned house nor taken any of the money which is cause for the action, and that he was totally free from all that, [10] and when [the defendant] took the legal oath for all what he said, our aforementioned master and judge issued an injunction to the plaintiff to desist from addressing the defendant further with this action, [11] such injunction being issued in accordance with due legal process, [12] and this took place in the early days of the month of Jumada II, 1078 [mid-November 1667].

[13] witnesses of the act [signed eight names] [14] and others who were present.

the collections recovered in Ottoman archives. More is bound to emerge. It will be partly a matter of luck, but discovery is also contingent on some methodological determination by lawyers reclaiming the most important source for their field: case law. Students of Middle Eastern law, both classical and contemporary, should always be reminded that they need to devote special attention to documentation that simply reads, “Before the court of (place), under HH judge (name), came on (date) the case of Plaintiff X v. Defendant Y. The plaintiff stated the facts of the complaint, the defendant answered, and (for the following reasons and on the basis of the evidence produced), judgment was issued for (Plaintiff or Defendant).”

As we continue our quest for Middle Eastern case law, we can now be fairly sure that court decisions were written up much earlier than the era of the Ottomans, or even the late Mamluks. In some paintings from thirteenth-century Baghdad, court scenes featuring the plaintiff, defendant, judges, and the public are beautifully reproduced (Grabar 1984) (see **Figure 4**).

Secondary literature confirms the style of judgment at least as far back as twelfth- or thirteenth-century Syria [Dam (d. 1244) 1987, pp. 427–28]. Although we do not have an actual Islamic court judgment before the late Mamluks in Jerusalem, the judgment recovery adventure does not stop there. Another extraordinary trove, this time found in the late nineteenth century, pushed back our Middle Eastern court records of the Islamic period to the late tenth century. In the process, Middle Eastern law was confirmed as a more accurate and meaningful label for the field as compared with alternative constructs, in this case Islamic law: Here, Jewish law claimed its place in the sun as a major subset of Middle Eastern law. (Christian law is another obvious contender for heightened attention within the field.⁹)

⁹See the brief treatment of Christian law codes below. There is a small, pioneering book of Christian legal cases in Arabic by Ebied & Young (1975).

The study of Jewish communities in classical Islam is marked by the world of the Geniza, which is associated with a great humanist historian, Samuel Goitein. His five-volume work (plus a posthumous index), *A Mediterranean Society: The Jewish Communities of the Arab World as Portrayed in the Documents of the Cairo Geniza*, published between 1967 and 1988 (Goitein 1967–1988), is based on the discovery in a Fustat (old Cairo) synagogue of an attic-like room containing hundreds of Judeo-Arabic documents that survived mostly untouched for several hundred years (1:1–28).

The Geniza records, in the main,¹⁰ come from Jewish literati, religious leaders, merchants, and judges. Jewish judges worked differently than their Islamic counterparts insofar as the binding nature of their decisions was weakened by the Jewish community’s lack of access to state coercive measures. With this constraint in mind, in the search of plaintiff-v.-defendant case law, a hitherto unstudied manuscript has emerged with great promise to elucidate the conundrum of Jewish courts under Muslim rule (see **Figure 5**).

With the Geniza records, Middle Eastern law now boasts even earlier documentation for the Islamic period, having pushed the date of the first extant judgment from 1390 CE to at least the beginning of the millennium. The earliest Jewish court decisions from the Geniza are from the eleventh century.¹¹

¹⁰Most of the Geniza records are in Judeo-Arabic, which is Arabic written in Hebrew letters. There is a much smaller, albeit significant, part of the Geniza collection that was written in Arabic (Khan 1993).

¹¹A plaintiff-v.-defendant case with a winner and a loser is exceptional in the courts of the Geniza, hence the unusual nature of the illustration in **Figure 5**. Most records are simply records of a settlement either in court or prior to going to court, leading to a *qinyan*, the Aramaic formulaic settlement in the Jewish courts of the time. In a careful study of a corpus of over 100 commercial documents, Philip Ackerman-Lieberman (2007) raises the issue of the autonomy of Jewish commercial law against the general view of Goitein (1967–1988) and Udovitch (1970) that the Jewish merchants of the time followed Islamic *law mercatoria*. In the corpus, the earliest court settlement is dated May 1070 (Ackerman-Lieberman 2007, 2:1–4).



Figure 4

Islamic court scene from the twelfth or thirteenth century. The picture is a fictional court scene, illustrated by Baghdad painter al-Wasiti, from one of the famous novellas of Hariri (d. 1122), *al-Maqamat* (the sessions). The *maqama* is a genre of Arabic literature that recounts the travails of a popular hero with a lot of humor and an extremely elaborate style. Hariri's *Maqamat* features the narrator recounting the adventures of the fictional Abu Zayd al-Surujī. *Al-maqama al-tabriziyya* (the Tabrizi session), featured here, is about a husband and wife quarrelling with and cursing each other in court. The judge gets so tired of their games that he orders his *haje* (doorman/secretary) to give each a dinar to get rid of them, declares the day a sad occasion for justice when the judge has to pay the litigants himself, and is so disheartened that he asks the *haje* to close down the court for the rest of the day. In the illustration, the two spouses are depicted on the left, and the judge is ordering the secretary to execute his "judgment." There are several Arabic editions of the *Maqamat*, including one on the internet (<http://ar.wikisource.org/wiki>) and several illustrated manuscripts, the best of which is in Paris (manuscript 5874 in the Bibliothèque Nationale de France). [Reproduced with permission from the Bibliothèque Nationale de France.]

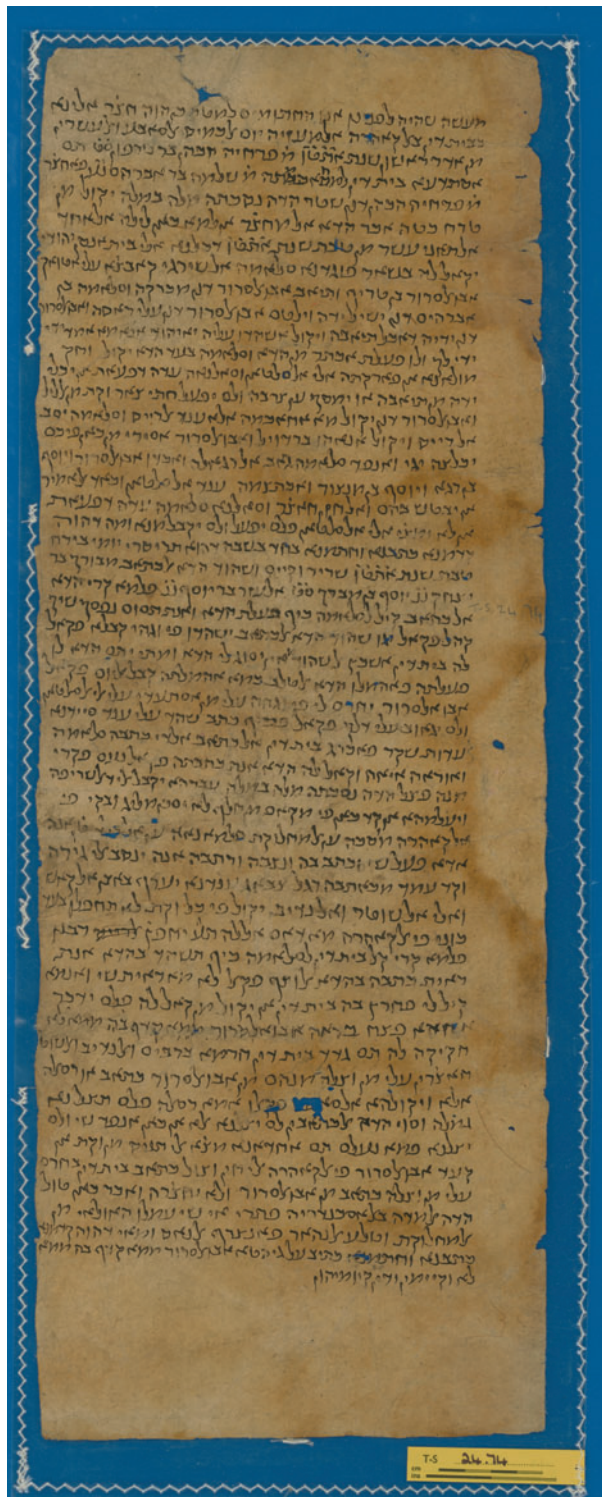


Figure 5

Jewish court case, Cairo 1104 CE (Jewish calendar: 1415), Salama's excommunication (TS 24.74, recto, in Cambridge University's Geniza Collection). This is a case of excommunication against Salama, son of Abraham, who reportedly beat up a colleague in a brawl that ended up before the Muslim authorities. The referral to a different jurisdiction is the main cause of the excommunication. (We are grateful to Professor Mark Cohen, who provided his early generous assistance with this text, and to Dr. Ben Outhwaite, Head of the Genizah Research Unit at Cambridge University Library, for his kind authorization to reproduce the digitized original manuscript. For more detailed information on this case, follow the Supplemental Material link in the online version of this article or at <http://www.annualreviews.org/>.)

Probing the Depths of Middle Eastern Law

Pre-Islamic Middle Eastern law: King Ur-ammu laws (ca. 2100 BCE). As we probe the depths of Middle Eastern law in search of the most precious legal documentation that courts produce, that is, justice for the litigants in the form of a judgment, we are naturally drawn to Middle Eastern law before the Islamic conquests. Here, there is a paradox resulting from the idiosyncrasies of climate and geography. More court records in the pre-Islamic Middle East have survived, as clay tablets aged in the Iraqi-Babylonian and Egyptian dry deserts are better conserved than papers on humid Mediterranean shores. We have two major instances of significant extant collections: The first comes from Elephantine, an island near Aswan in Upper Egypt, with hundreds of legal records on papyri and ostraca relating to a Jewish community in the fifth century BCE and including the resolution of legal disputes.¹²

¹² *Ostraca*, singular *ostrakon*, are pieces of pottery on which texts are inscribed. Papyri, singular papyrus, are made from the papyrus plant native to Egypt. For Elephantine legal studies, see Modrzejewski (1997) and Muffs (2003). For demotic law in Ancient Egypt, see Manning (2003). Scholars have even extensively mapped Hittite law (Hoffner 1997). Note that the Dead Sea scrolls, another major trove from close to the birth of Christianity, have limited input in strictly legal matters (Vermes 1995).

The second comes from Babylonia and is much richer, spanning several centuries from the Laws of Ur-nammu (or Ur-namma) in ca. 2100 BCE to ca. 800 BCE.¹³ Among the thousands of law and business records that survived on the buried tablets of the Iraqi hinterland to the Tigris and the Euphrates Rivers, an iconic court decision referred to as the Nippur trial merits a special mention (see **Figure 6**). The case features a complaint against the widow of a murdered man whom the assembly/court meeting in the city of Nippur condemned to death for not denouncing his assassins whom she knew carried out the crime. She was found “as guilty as them.”

Judgments in court are, naturally, only part of the story of Middle Eastern law. The full array of documents includes the portions of the founding texts of the monotheistic traditions, the Old and New Testaments then the Qur’an; contractual arrangements and other deeds, especially marriage, wills, sales, acknowledgments, receipts, and debt discharges; laws and statutes sometimes coalescing into codes, which function more as “customaries” (from the French *coutumiers*, which are collections of customary laws for a particular region) than as binding statutes and so appear closer to the re-statements of modern US law. Among great historical troves of such codes, the earliest takes us back to ca. 2100 BCE. King Ur-nammu’s laws, fragments of which have come down to us through the pains of archaeological digs and specialists of Mesopotamia’s cuneiform languages, are among the earliest (Wilcke 2002). Eshnunna’s code a century or so later has survived better (Yaron 1988), but the most famous and most comprehensive legal text is Hammurabi’s Code from around the middle of the eighteenth century BCE, which was found in 1901 almost intact on a stela¹⁴ (see **Figure 2**) (for an authoritative translation of and commentary on Hammurabi’s Code, see Driver & Miles 1952).

¹³A good introduction to Mesopotamian law and society is found in Postgate (1992, ch. 15).

¹⁴Stela is the archaeological term for a stone slab or column typically bearing a commemorative inscription or design.



Figure 6

Nippur trial, ca. 1800 BCE: Nindada’s silence as guilt. The Nippur trial, the most famous criminal trial record of Mesopotamian antiquity, appears on this tablet and centers on Nindada, the wife of an official who was murdered in the jurisdiction of Nippur, near present-day Baghdad. The murderers were arrested, and she was accused of having known about the murder after it was committed but failing to inform the authorities [Nindada remained silent (“covered her mouth”)]. The majority of the assembly/jury, having been asked whether Nindada was guilty of complicity or being an accessory to the fact, found that she was “as guilty as if she had committed the murder.” As a result, she was sentenced to death along with the murderers. [Reproduced with permission from the University of Pennsylvania Museum of Archaeology and Anthropology, with particular thanks to Steve Tinney and Professor John Brinkman. For authoritative translations, see Postgate (1992, p. 278) and Roth (1998, pp. 175–81).]

Mesopotamian law is so rich that it has long been the subject of specialized journals.¹⁵ Less

¹⁵Examples are *Archives d’Histoire du Droit Oriental*, continued in 1954 as *Revue Internationale des Droits de l’Antiquité*, and many other more or less specialized (e.g., in Jewish or Roman law) journals with legal articles on the Middle East

known are Ethiopic legal traditions that may have survived in the modern Coptic tradition of Egypt. Ancient Persia's Zoroastrian law has its few scholars concentrating on fragmented codes, of which the most famous is the *Law-book of a Thousand Decisions* (Modi & Anklesaria 1901–1913; see also Perikhanian 1970). Also, in the interim long period of late Roman law, scholars have rediscovered, after the groundbreaking works of Carlo Nallino (1942), Roman provincial law (Kaufhold 1985, Crone 1987), with a major customary/restatement, possibly a binding code, known as the Syro-Roman Code from around the fifth century CE (Selb & Kaufhold 2002). The Syro-Roman Code has survived as a manuscript in five versions: three in Syriac-Aramaic,¹⁶ one in Arabic, and one, curiously, in Armenian [Bruns & Sachau 1961 (1880)]. This suggests that the Armenian and Ethiopic frontiers of Middle Eastern law require a flexible geographical and historical appreciation of the field, although research into that line may have not even started.

In all these cases, the confluence of legal scholarship and often dead languages makes legal specialists rare birds. Evident limitations on the intellectual embrace of such a vast field generally confine each scholar to his or her more limited territory requiring difficult linguistic expertise that is not easily transferrable to other areas of Middle Eastern law. The boundaries within the horizontal and vertical layers that form Middle Eastern law are falling, however, and new avenues have opened in the study of late antiquity (Brown 1978), which straddles the pre-Islamic and Islamic periods of Middle Eastern law. It is increasingly known as Roman provincial law (Crone 1987).

As Roman provincial law has pushed its way again into the sun, one is reminded of

Byzantium's law, a great unknown to the Islamic-ruled Middle East world despite its importance until the fall of Constantinople in 1453 CE. Byzantine law appears as a new prime component of Middle Eastern law, and significant legal scholarship has consolidated the field over the past 50 years.¹⁷ At the frontier between Byzantium and Islam (Schacht 1957), the works of 'Irfan Shahid (1984a,b) underline the importance of late-antiquity interaction between Islamic and non-Islamic law; but until 2007, there was scant scholarship bridging these two large subsets of Middle Eastern law. That year, a large book on the influence of late Roman law forged major new inroads for our understanding of Islamic law, both in the structure and concepts of classical Islamic legal treatises, *fiqh*, and in the special continuity of the Aristotelian logic in jurisprudence into the Islamic legal discipline known as *usul al-fiqh* (Jokisch 2007).

Islamic law (ca. 627 CE). When it comes to the Islamic period of Middle Eastern law, the legal documentation is immense, and the genres are many. Albeit the pride of scholars, owing to the difficulty of its formalization, *usul al-fiqh*, Islamic legal logic, is a minor genre with the objective of deducing the legal rule (*istinbat al-hukm al-shar'i*) (Shafi'i 1939, Khallaf 1956, Sadr 1964). The more important legacy is constituted by the *fiqh* books, multivolume, comprehensive legal treatises on the full gamut of human action, from prayer and rituals to family law, civil and commercial transactions, international law, the law of water, slave law, book of judges, criminal law, succession, etc. The rituals' part, *'ibadat* (literally acts of worship), is of less interest to modern law than that of transactions, *mu'amalat*, but the original dividing line between the two realms is thin.

Underlining the special nature of personal, as opposed to territorial, law, *fiqh* books build upon the two central Ur sources that are specific to the latecomer religion: (a) the Qur'an, which consists of approximately 6,200 verses,

(e.g., *Journal of the Economic and Social History of the Orient* and *Revue Historique de Droit Français et Étranger*).

¹⁶Aramaic is a Semitic language spoken by Christ, close to Hebrew and Arabic. Following Akkadian in the previous *longue durée* of Mesopotamian law, Aramaic operated at the core of the Middle East as the *lingua franca* of diplomacy and law for about a thousand years, from about 800 BCE to the advent of Islam.

¹⁷For an introductory survey of legal scholarship in the field, see Stolte (2008).

among which between 80 and 500, depending on scholars, are more legal in tone, and (b) the Sunna or *badith*, the sayings and acts of the Prophet Muhammad during his lifetime (ca. 580–632 CE), as reported by tradents known as the *muhaddithun*. These *badith* tradents narrated and compiled what the *sahaba*, the companions of the Prophet, recalled he said and did, or did not say or do [Ibn al-Salah (d. 1245) 1984]. In those early years following the Prophet's death, a geographical split of the nascent law schools coalesced in Medina and Mecca around the literalists, *ahl al-badith* (the people of *badith*), and in Iraq around the nonliteralists, *ahl al-ra'i* (the people of opinion, the interpretivists or contextualists), who were ready to look for meaning beyond the four corners of the urtexts [Ibn Khaldun (d. 1406) 1978, p. 446].

The methodological split is familiar to any student of American constitutional interpretation—or to the analyst of the debates on how to interpret the civil code of France in the nineteenth century, with the literalists called *École de l'exégèse* and the contextualists described as *École historique et sociologique*. In Middle Eastern law around 1000 CE, the same split can be found in the Jewish tradition between the literalist Karaites and the Rabbinites, who were more open to a contextual interpretation (Goitein 1967–1988, 1:17–18; Baumgarten 1997, p. 36). Within Islamic law, both Sunnis and Shi'is developed a strong divide between literalists and interpretivists. In Sunni law, the Hanafi school represents the latter, the Zahiris the former (Goldziher 1884; Sarakhsi 1909, 12:112). In Shi'ism, the corresponding schools are the Akhbaris (literalists) and the Usulis (interpretivists) [Bahrani (d. 1772) 1985, 1:119, 167–70; Bahr al-'Ulum 1964, pp. 64–71; Newman 1992; Cole 2002; Gleave 2007].¹⁸

There are more sophisticated ways to approach the field. One should especially mention the legacy of John Wansbrough (1977) for the study of early Islam, who created a revolution in the legal field by dwelling on the concepts of

canonization and calques: “It may, indeed, appear from my description of [the Qur'an] that the Muslim scripture is not only composite, but also, and such can be inferred from a typological analysis of Quranic exegesis, that the period required for its achievement was rather more than a single generation” (pp. 43–44). As the early texts are fragmentary, were collected much later than when they were revealed to the Prophet, and are subject to all kinds of influences, both in the Christian-Jewish sectarian milieu (Wansbrough 1978), where they are born as calques, and in foreign lands, where they were deployed after the conquest, the key date for the jelling of a sacred text into a canon¹⁹ comes necessarily at a much later date than any official birth date of the religion. The Qur'anic revelation, in official Muslim scholarly lore, came to Prophet Muhammad between 610 and 630 CE and is heavily inscribed in the context of the life of the Prophet through his exile from his hometown in 622 and his return five years later (Noeldeke 1909–1938, Blachère 1949–1951). Scholars have long agreed that the Qur'an cannot be understood without the *badith*, and vice versa, but Wansbrough also added two other central sources in the process of canonization. The first is the *sira* (biography) of the Prophet written by Ibn Ishaq (d. ca. 767) and edited by Ibn Hisham (d. 833) (Ibn Ishaq 2004), which lifts the veil on otherwise obscure developments in the Qur'anic text. The second is the literature of *maghazi* (conquests) attributed to Muhammad Ibn 'Umar Waqidi [(d. 822) 1966], which sheds an indispensable light on the necessary understanding of the Muslim canon that the community absorbed and reinforced into identifiable, stable rituals and legal practice at a time of expansion and interaction with the conquered people. The Qur'an, *badith*, *sira*, and *maghazi* are central textual components for canonization, a slow

¹⁸Akhbarism is said to have survived in small pockets limited to present-day Bahrain.

¹⁹Canon means rod in the original Greek, suggesting clarity and binding power, from which derive *qanun* in *qanunnamebs*, the decrees of the Ottoman Sultan since the sixteenth century CE, and in *qanun*, statutes in contemporary Middle Eastern law. (On Ottoman law generally, see Gerber 1994.)

process of legal community building that occurred over a period of about 200 years. Not surprisingly, the first comprehensive legal treatises by the great scholars and eponyms of the schools of law begin to appear two centuries after the central texts were written.

For lawyers, canonization is key to understanding that the dates ascribed to the Qur'an, sometimes very precisely for this or that verse, must be related to the time when they become binding to a significant critical mass of people as a Muslim community. We therefore face two equally compelling birth dates for Islamic law: the first is 627 CE, when by the self-giving authority of the Qur'an, the Muslim community was required to legally abide by the Book.²⁰ The second possible birth date of Islamic law as discipline follows canonization and the institutionalization concomitant with a critical legal mass of scholarship. This obviously needed more time, and the first *fiqh* books that read as coherent legal argumentation are from the late eighth century CE (Schacht 1950, Calder 1993). Before the *fiqh* books, law is far more elusive. Less than 10% of the Qur'anic verses and of the *hadith* gives any legal clues. The *sira* and *maghazi* include even less legal material.

Owing to lawyerly insistence on judgments issued by a court, there is probably room for a third arguable birth date. The institutionalized, binding quality dear to lawyers is best adduced from court reports matching texts and their application in real life to disputes between people. Thus, a third date is the first time the Prophet acted as a judge, but he doubled up as political leader, so his first judgment can hardly be set in stone for the birth of case law, and the relevant literature on the Prophet as judge is sparse.²¹

²⁰On V:44 of the Qur'an as the birth date, see Goitein (1960); for modern treatment by Islamic scholars, see Mallat (1993, pp. 61–67).

²¹The year 627 CE could also be that date following Qur'an V:44. In that key passage, the Prophet as instructed by God is actually asserting a negative competence by asking Jewish parties in the dispute to seek their own judge and apply their own law rather than come to him to arbitrate/judge. For the Prophet as judge from within the Islamic tradition on the basis of a reconstruction of relevant *hadith*, see the Cordoban scholar Ibn al-Talla' [(d. 1104) 1978].

Unfortunately, scholarly research into case law has not taken us farther back than the eleventh century CE; moreover, the Geniza case law from that time is weak because it includes predominantly Jewish law cases and therefore only indirectly sheds light on the law practiced in the dominant Muslim courts at the time. To firm up this third birth date, we'll need to depend on future discoveries. For the moment, Middle Eastern law in its Islamic phase reaches back to around 1050 CE for Jewish law and 1390 CE for Muslim *qadis'* decisions. The names of early *qadis* are well known, with lineages ascertained and a special biographical genre known as *tabaqat*, but their judgments are insufficiently documented (on *tabaqat* literature, see Schacht 1964, p. 266).

Genres. There are many more genres of Islamic law than case law. Each genre offers a special inroad into the multilayered, multifaceted expression of Middle Eastern law during the classical Islamic age.

Tabaqat, *fiqh*, and *usul al-fiqh* were mentioned. Another important genre is the fatwa. A fatwa is an opinion given by an expert in response to the generally lay questioner, and it corresponds to the *responsa* genre common in both Roman and Jewish law. The questioner, the *mustafti*, is a nonexpert person who seeks from the expert, the *mufti*, an answer on a circumscribed legal point he is unable to fathom himself [Ibn al-Salah (d. 1245) 1986]. The field of questions is as large as life. The question could be about how to pray when one travels. It could be whether the deposit one makes in a bank breaches the law because it bears interest. The answer could be yes or no, or it could go on for a few lines, a page, and in recent years, the length of a book (for illustrations in several studies of fatwas across time and space, see Masud et al. 1996). His answer does not create an *erga omnes* entitlement or right, it is not binding, and it is not universal. It can be persuasive, especially if the *mufti* is a recognized expert among his peers or is a state appointee, who then acts in his official capacity at an altogether higher legal level at which the line

between persuasive and binding is blurred. The Ottomans established a dedicated office for the *mufti*, who along with the chief judge is second only to the sultan (Repp 1986, Imber 1997). The top official *mufti* remains particularly important in contemporary Egypt and Saudi Arabia, but each country with a sizeable Sunni population tends to have its own national *mufti* who is a high government official.

A recently revisited genre is the *ashbab wal-naza'ir* (literally, similarities or like-and-corresponding rules), also known as *qawa'ed* rules, which were drawn to the attention of legal scholarship by Wolfhart Heinrichs (2002). Some *hadith* can be construed as *qawa'ed*, but the genre as such comes late.²² Its two most famous books are by the Hanbali scholar Ibn Rajab [(d. 1393) 1988] and the Hanafi scholar Ibn Nujaym [(d. 1563) 1893]. Books of *ashbab* consist of legal aphorisms set up in clusters and were important for early decrees (fifteenth-to-sixteenth-century *qanunnamehs*) and late codification (the nineteenth-century *Majalla*, the civil code) in the Ottoman Empire.

A little studied genre despite the formidable information contained in its books is *adab al-qadi*, or *adab al-qada'*, the ways of the judge/judgeship, covering both deontology and practice. The first *adab al-qadi* book extant is Waki's [(d. 941) 1947–1950] *Akhbar al-qudat*. It consists mostly of short stories about judges, anecdotes that say little about the rule of law. As the genre developed, however, later texts began to provide precious, reasoned insights on how judges saw their profession. Ibn Abi al-Dam's [(d. 1244) 1987] *Kitab adab al-qada'*, from the thirteenth century CE, is a rich illustration of the genre. In the methodological and deontological part, the judge asks about the reasons for his job; the best ways to carry it out impartially; the behavior he needs to adopt to avoid bribes, delay, and undue interference of scribes and people of influence; and how to apply the rules of procedure in the court he presides over. On substantive issues, he lists a number of hypotheticals

that he answers in the form of a paper (similar to answering a modern law school exam).

Legal scholarship has just started to pay attention to *adab al-qadi*. In combination with studies of real court cases and the other genres, research into this genre will help the picture of the multiple layers of lawmaking in the classical Islamic age of the Middle East become ever richer and more precise.

There are other genres, some minor such as the *bisba*, a police-like job that is sometimes translated as inspection of the market (Chalmers Gendron 1973) or protoadministrative law (Hill 1993), which Karen Stilt (2011) documented innovatively as a form of soft legal power through the historical chronicles she read as legal disputes. Another minor genre is *ikhtilaf*, the disagreement books, in which pairs of scholars argue against each other, usually on a particular point or set of points that have no easy answer.²³ A more important genre comes from the collections of formularies, which tell us how notaries public streamline the most common contracts for their clients, including the variations possible in, say, a contract of betrothal or marriage or the sale of a house (Tyan 1945, Wakin 1972).

In the world of Islamic law, all these genres pale in comparison to *fiqh* books, the partial or comprehensive treatises of the major scholars. Among the most remarkable contemporary treatments of issues arising from *fiqh* books are the studies of Baber Johansen (e.g., 1999, 2006). Considering the importance of the *fiqh* legacy, we should dwell on them a bit longer. The first impressive extant legal treatise is Shafi'i's [(d. 820) 1903–1908] *Kitab al-Umm* in seven big volumes. Shafi'i is the eponym of the Shafi'i school. Shortly before him, we have Muhammad Shaybani's [(d. 804) 1990] *Asl*, a little studied yet comprehensive treatise

²³An early example is *Ikhtilaf Abu Hanifa* (d. 767) *wa ibn Abi Laila* (d. 765), as related by the scholars' student Shams al-Din al-Sarakhsi (d. 1095) and edited by Abu Yusuf (d. 798) in *al-Mabsut* (Sarakhsi 1909, 30:128–67). For other works on *ikhtilaf*, see Schacht's (1964, p. 265) bibliography in his *An Introduction to Islamic Law*, which remains of great help for research on Islamic law.

²²For detailed work on one early criminal law maxim (though not on the genre), see Rabb (2010).

without which the structure of later *fiqh* books in the Hanafi school could not be comprehended. Scholars have tended to pay more attention to *al-Umm*, partly because it also includes Shafi'i's (1903–1908, vol. 7) famous treatise on *usul al-fiqh*, his *risala*,²⁴ making him a well-known figure across the field. But it is through Shaybani and his contemporary Abu Yusuf (d. 798), who left us a famous treatise on land law, *kharaj* (Yusuf 1979, Modarressi 1983), that the legacy of their master Abu Hanifa (d. 767), the eponym of the most important and richest Islamic law school, has come to us.

The Hanafi school's leaders include fascinating polymaths who wrote comprehensive treatises eliciting a unique wealth of legal references. Limiting ourselves to just a few of the most famous legal scholars and their texts after Shaybani, we should mention the Persian al-Marwazi [(d. 943) n.d.], author of *al-Kafi*, still in manuscript; the Transoxanian (now northern Iran/Afghanistan/southern Turkmenistan) al-Sarakhsi [(d. ca. 1095) 1909], author of *al-Mabsut*; the Syrian al-Kasani [(d. 1191) 1910], author of *Bada'e al-Sana'e*; the Palestinian-Ottoman Ibn Nujaym [(d. 1563) 1893], author of *al-Bahr al-Ra'eq*; and the Syrian Ibn 'Abidin [(d. 1832) 1994], author of *Radd al-Muhtar*.

The encyclopedic Hanafi treatises just mentioned are but a drop in the sea of Islamic legal scholarship. There are hundreds of them within the Hanafi school. Scholars have also authored delightful short treatises on points of high controversy during their time. The more famous pointed treatises on a particular controversy tend to be collected in *rasa'el* (plural of *risala*, treatise/letter) (see, e.g., 'Abidin n.d.). A similar wealth of scholars and treatises, albeit to a lesser degree, can be found in the other three Sunni schools, Shafi'ism, Malikism, and Hanbalism. Some Sunni legal schools have not survived, such as the Syrian Uza'i's (d. 774) and the school of the Iraqi al-Tabari (d. 921).

Among Sunnis, Ibn 'Abidin is the last encyclopedic *fiqh* scholar in the traditional style.

²⁴The *risala* was also published separately in Arabic and in English (see Shafi'i 1939 and Khadduri 1961, respectively).

Serious Sunni treatises of law of the twentieth century have become Middle Eastern in a very different way: They incorporate the codified legacy of the late Ottoman Empire and national law heavily influenced by the West, especially in Egypt. The Egyptian law school dean, civil code drafter, and judge 'Abd al-Razzaq al-Sanhuri (1954–1959) left us one such impressive work. The Syrian Wahbeh al-Zuhayli (1984) wrote an encyclopedic *fiqh* work in a different, more traditional vein. In the range of political advocates, rather than detached scholars, the spectrum covers the full range of militant Islam, from the writings of the leader of the Tunisian al-Nahda, Rashed al-Ghannushi (1993, 2012), to the more radical style of the Egyptian preacher Yusuf al-Qaradawi (1974).

There are also hundreds of scholars and *fiqh* books among Shi'is. The tradition of comprehensive *fiqh* writing continues today in Shi'ism in a genre known as the *risala 'amaliyya* (practical treatise), although the effort is getting increasingly undermined by new methodologies (Mallat 1993, pp. 47–48). In Iran, the best known scholar is 'Abd al-Karim Surush (1991). In Shi'i Iraq, two rising scholars are Hasan Bahr al-'Ulum (2004, 2010) and the Bahraini-born Muhammad Sanad.²⁵

Sunnis and Shi'is constitute the massive majority of Muslims today. However, a full picture must include the much smaller theological-legal schools, such as the Zaydis/Isma'ilis or the Ibadis, as well as late schools who profess adherence to a reformed Islam, such as Babis and Baha'is, and nonproselytizing closed groups, such as the 'Alawis and the Druze, whose scholarship is in theory forbidden to outsiders and limited even to the noninitiate.²⁶

²⁵Many works are available for downloading at Sanad's website: <http://www.m-sanad.com/index.php/2012-05-14-22-53-49> (last accessed January 2013).

²⁶The *Encyclopaedia of Islam* (in its third edition since 1916) and the *Encyclopaedia Iranica*, both of which can be found online (<http://referenceworks.brillonline.com/browse/encyclopaedia-of-islam-3> and <http://www.iranicaonline.org/>), provide useful scholarly entries for all these sects.

Nor can we forget the Jewish and Christian legal traditions. Jewish law flourished in the Middle East with the two most revered rabbis in the Islamic classical age: Maimonides (Arabic: Ibn Maimun, d. 1204), an Egyptian contemporary of al-Kasani and author of the *Mishneh Torah* (The second Torah) [Maimonides 1949–1982 (ca. 1180); see Hecht et al. 1996, pp. 277–79], and the Palestinian Joseph Karo (d. 1575), author of *Shulhan Arukh* (The prepared or set table) [Karo 1954 (ca. 1567); see also Hecht et al. 1996, pp. 339–43], which remains the standard classical restatement of Jewish law to date.²⁷ In addition to the Syro-Roman Code and the still insufficiently studied Byzantine law within the larger Middle Eastern legal scholarship, the two best known books on Middle Eastern ecclesiastic and substantive law are the Maronite *Kitab al-buda* (eleventh century) (Joubair 1991) and the Coptic *al-Majmu' al-safawi* (thirteenth century), also known as the *Nomocanon* of Ibn al-'Assal (1908). These two books, along with successors such as Qara'ali's [(d. 1742) 1959] *Mukhtasar al-shari'a*, demonstrate the importance of a Christian Middle Eastern law milieu, which also includes the Ethiopian *Fetba Nagest* (the law of the kings) (Tzadua 1968). *Fetba Nagest* is the later Ge'ez translation of Ibn al-'Assal that remained in force in Ethiopia until the twentieth century. There is a strong set of Christian legal calques in the Middle East, and the region's monasteries are replete with manuscripts. This legacy ranges from scholarship around the holdings of Saint Catherine's monastery in the Sinai to the treasures of Maronite, Greek Orthodox, and Greek Catholic convents in the Lebanese mountains to the collection of the Vatican library (Humphreys 1991, pp. 170–71).

A Massive New Layer for Middle Eastern Law: The Napoleonic Invasion (ca. 1798 CE)

Among the many plateaus of Middle Eastern law discussed above stands a heavy Western legal tradition. This watershed in Middle Eastern law, all historians agree, was in 1798 when Napoleon invaded Egypt. His pervasive legacy in the Middle East is associated with the discipline of Orientalism (Said 1978). In law, the legacy took the form of a slow but inexorable displacement of the prevailing paradigm of Middle Eastern law, by that time predominantly Islamic, with Western categories and imported institutions. Both in style and in substance, Western law added an evident layer to law in the Middle East. This is also why the term Middle Eastern law provides a more accurate name than other constructs for the field of study and legal practice.

On top of the deep layers of Middle Eastern law were juxtaposed and superimposed Western law's two main legal families, the French-style civil law and the common law of British colonialism, which is dominant today in Pakistan, Israel, some of the Gulf countries, and part of the Sudan. With the exception of Saudi Arabia and North Yemen, where there was no formal Western colonization, the remainder of the Middle East fell under the influence of civil law, in particular French law. Until the Islamic revolution in Iran in 1979, Islamic law was retreating steadily, and its last precinct was family law. As Islamic law started a comeback in the late 1970s,²⁸ the legal system got even more complicated. In fact, law in the contemporary Middle East is much more than “hybrid” law (Schlesinger 2009, p. 379; see also Berman 2010): It looks like the Deleuzian “rhizome” described in the first chapter of *Mille Plateaux*, with a dense network of roads

²⁷The Yale Judaica series embarked on a full translation in English of *Mishneh Torah* beginning in 1948 (Maimonides 1949–1982). Karo's summa has not yet been translated in full in English; for partial translations, see Karo (1954), translated by C.N. Denburg, and Karo (1982), translated by S.M. Passamanek.

²⁸This led to a cottage industry of books on political Islam and to Islamic law/*shari'a* (rarely *fiqh*). The quality of recent books on Islamic law varies, but there hardly passes a year without several Western titles purporting to embrace the field (see, e.g., Kamali 2008, Hallaq 2009, Rohe 2009, Bhala 2011, Ibrahim 2012).

that intersect, go in parallel, end abruptly, and restart (Deleuze & Guattari 1980, pp. 9–37).

This multiplicity of the layers of Middle Eastern law can now be presented from the vantage point of the early twenty-first century. Perspectives are also multiple, but for the sake of simplicity, we next survey the main fields of Middle Eastern law from the legal practitioner's point of view, describing the main legal references she uses and the way she goes about her work.

EVERYDAY PRACTICE OF MIDDLE EASTERN LAW (ca. 2010)

But for the debilitating turmoil that comes in the shape of wars, invasions, civil strife, secessions, and the structural weakening of the rule of law in rentier states dominated by an oil-based economy and the dictatorial grip over the massive majority of the countries in the region, judges and lawyers ply their trade in any jurisdiction, from Mauritania to Afghanistan, like any of their Western counterparts. War and authoritarianism are big constraints on the rule of law, but some suspension of disbelief is needed to understand the daily life of Middle Eastern law for the lawyer who seeks to make a living in her practice as a counsel or litigator.

The expertise varies, naturally, but the prism of the typical lawyer in the Middle East, like the rest of the world, is almost exclusively national.²⁹

Private Law

Commercial law. A Middle Eastern commercial lawyer deals with banking transactions, set-

ting up companies, writing contracts of sales and credit, leasing commercial premises, negotiating goodwill, and doing mergers and acquisitions, and she applies related tax and regulatory laws to improve her client's business position. In doing so, she acts exactly as her European or American counterpart does. The language she uses is a translation from Western codes and practices into the vernacular—Arabic, Hebrew, Turkish, Persian, or Kurdish—and she increasingly writes down contracts, even domestic contracts, in English. The increased dominance of English as contemporary *lingua franca* of commercial law is evident worldwide, and Middle Eastern countries are affected in the use of English for both drafting contracts and referencing the law. Most educated international commercial and trade lawyers in the Middle East speak English. The expansion of English also affects the substance of commercial and other laws with the continuing rise of American law in educational (through the leading law schools in the United States) and practical terms (through the US dominance over the financial system, international trade regulation, and the derivative treaties and cases adjudicated mostly in English before international commercial tribunals).

The habitual commercial lawyer looks askance at those who operate unfamiliar schemes drawn from some special attachment to the faith, such as Islamic banking, and she probably is bemused by the contortions of colleagues flaunting words such as *hawala*, *al-qard al-hasan*, or *sukuk* to avoid the semblance of using interest on commercial or civil transactions.³⁰ To understand the field of self-styled Islamic banking and finance, the works of Ibrahim Warde (2000) in the West and those of Muhammad Baqer as-Sadr (1969) in the Middle East are the most solid.

The commercial lawyer must be particularly attentive to the local laws that

²⁹Cases are generally published in national jurisdictions, but it is not always easy to find regular and competent reporters. In some cases, reporting is good, such as in Pakistan, Israel, Jordan, and Lebanon. In others, such as Saudi Arabia and Yemen, case reporters are sporadic or simply don't exist. *Al-Majalla al-'arabiyya lil-fiqh wal-qada'* (MAFQ), an excellent regional reporter that was published between 1980 and the end of the twentieth century, seems to have unfortunately been discontinued. MAFQ is an indispensable reference for the Arab Middle Eastern lawyer. It covered over 20 Arab jurisdictions and published chosen cases from each, arranging them by legal discipline.

³⁰These exotic-sounding words simply translate respectively as transfer, interest-free loan (more literally, good loan), and checks (*sukuk* is the plural of *sakk*, the word from which the Western check derives).

regulate commercial agency, as they tend to be excessively protective of the local agent-importer-merchant against the revocation of his commercial agency by the foreign seller-exporter-manufacturer (Saleh 1995). Other local idiosyncrasies arise from the difficult adaptation to the concept of limited liability in company law. A recent book suggests that economic progress was stifled in the Middle East by institutional hurdles created by Islamic law, especially the absence of commercial companies, the fragmentation of estates under Islamic law, and the constraints of *waqfs* (trusts) (Kuran 2011). Like other attempts to reduce a complex, multilayered, deep legacy to a silver-bullet theory explaining progress or stagnation because of Islamic law,³¹ the one-size-fits-all thesis is enticing and sometimes brilliant, but it is perforce overbroad. “Why Muslims lagged behind, while others made progress” is an old question raised in a book bearing this title by Shakib Arslan (1939). Arslan, like many of his contemporaries, responded by emphasizing the inadequacy of education, which is no doubt also part of the story. However, colonialism and subsequent iterations of Western domination are better economic reasons than are the shortcuts of either poor education or the backwardness of an immovable Islamic law. In the twenty-first century, the more real constraints that the commercial lawyer is likely to face have more to do with persistent family legal structures in most business ventures—but how Middle Eastern or Islamic is that?³²—and with the heavy hand wielded by authoritarian, rentier, nepotistic, and kleptomaniac rulers, combined with Western obsession with Middle East oil. Poor governance practice and the blind eye turned by the world because of oil³³

³¹ A similarly alluring and overbroad essay, but in the opposite direction, is Feldman (2008), which portrays Islamic law and legal scholars as “the good guys” whose countervailing power to tyranny was lost in the modern Middle East.

³² To be fair to Kuran, he does make this point (see Kuran 2011, p. 48) but does not factor it in enough as a mark of constrained capitalism in the Middle East.

³³ Two good starting books are the remarkable history of oil by Daniel Yergin (1992, with updated editions), though he

impede freedom to invest and to carry on business without parasitic interference. In an adverse context resulting from a baffled rule of law, the typical commercial lawyer operates mostly like her Western counterpart, carrying out the main commercial transactions common to business worldwide (e.g., Dabbah 2007). This is evident in the language of the Middle East courts deciding commercial law cases.³⁴

Civil law. In what the French tradition considers civil law, essentially contracts and torts in daily life, the Middle Eastern lawyer and judge have a more serious historical legacy to rely upon for the discharge of their jobs. At the center of the codification process stand two legislative monuments: the Ottoman Majalla (promulgated between 1869 and 1876)³⁵ and the Egyptian Civil Code (ECC, promulgated in 1949), also known by the name of its main drafter as the Sanhuri Code (Saleh 1993).³⁶ Except for Pakistan and Israel, where the common law dominates, the work of Middle Eastern lawyers and judges dealing with contracts and torts falls under either the Majalla legacy or the ECC imprint. The Majalla is civil code in the French tradition, but it took its

does not pay enough attention to how it wreaks havoc on democracy and the rule of law in the Middle East, and a study confirming the distortion of life by oil in Algeria, Iraq, and Libya, which makes the claim empirically with great persuasion (Martinez 2010).

³⁴ For typical case law in English, see, for example, two volumes of United Arab Emirates cases translated and digested into English (Price & Tamimi 1998, 2005).

³⁵ For a Majalla translation in English, with comments on its application in Mandatory Palestine, see Hooper (1933–1936). The most cited commentaries of the Majalla are, in Turkish, ‘Ali Haydar’s (1881) and, in Arabic, Salim Baz’s (1923).

³⁶ The best codes are those that have kept their *travaux préparatoires* (TP) or lent themselves to good commentaries; it’s even better when the commentaries document case law. In the legacy of the Majalla, remarkable TP are found in Jordan (Naqabat al-Muhamin 1992). In the case of Egypt, the seven-volume TP are also very helpful (Minist. Justice 1949). Sanhuri (1952–1970) and Morcos (1964–1967) wrote the most authoritative treatises on the ECC, which are dated but unsurpassed. Italian scholar Santillana (1899) has a remarkable *Avant-Projet* on the codes of Morocco (promulgated in 1913) and Tunisia (promulgated in 1906).

substance and language from classical *fiqh*. It directly inspired the current civil code of Persia (Iran) (promulgated between 1928 and 1935)³⁷ and the restatement of Hanbali law in Saudi Arabia (Qari 1981). The Majalla's sources in classical law are from the Hanafi school. A parallel codification effort was undertaken in North Africa under the inspiration of the Maliki school.³⁸ The Majalla itself was applied in several Middle Eastern countries for many decades, resulting in a large case-law legacy that has yet to be studied.³⁹

The ECC is more controversial in terms of its incorporation of and debt to the Islamic legal tradition. The Sanhuri Code was reproduced almost verbatim as the civil codes of Syria and Libya, and a mixture of both the Sanhuri Code and the Majalla has found its way into more modern civil law codifications in Jordan (promulgated in 1976), the United Arab Emirates (promulgated in 1985), and Yemen (promulgated in 1992). In all cases, the diligent civil law judge looks first to his national code, then to the national decisions of his country's higher court applying them in like cases, and then to the academic commentators.

Owing to the cross-pollination and diffusion of cultural and intellectual influences across the successive empires discussed in the introduction, these different national bodies of law contain within them significant evidence of colonial influence. Most of North Africa was heavily influenced by French law because of the long colonization of Morocco, Algeria, and Tunisia. Syria and Lebanon's legal systems also bear evident hallmarks of the French legacy. Lebanon's judges still quote French decisions and doctrine in their judgments. Britain was more influential

elsewhere, but the scene is eclectic, including in Egypt, where the colonization was British but the legal system was more influenced by the French civil code tradition.

Property law. Property or land law may be considered a subset of civil law, but it tends to be heavily indebted to historically determined local structures. In 1858, the first attempt to codify land law in the Ottoman Empire was made (Sluglett & Farouk-Sluglett 1984), and the Majalla did not address property in the way found in the Code Napoléon or later in the Egyptian Civil Code. Specific land statutes tend to be passed independently from the civil code. Land law in the Middle East is complicated by a moment in the mid-twentieth century of massive socialist land reforms (Saab 1967), followed by the rise of individualism in ownership across the region. Property law is often the place of disputes of Biblical proportions, most evidently in historic Palestine, but many countries with profound ethnic and sectarian divides know similar problems (e.g., Iraq after Saddam Hussein's fall) (Van der Auweraert 2009). There is not enough scholarship on land law in the Middle East that goes beyond some national textbooks. The idiosyncratic characteristics of land law, as reflected in time-honored institutions such as *waqf* (trusts), as well as in recent superimposed institutions such as the land cadastre or condominium laws in multistory buildings, await comprehensive scholarship that may (or may not) identify commonalities beyond national jurisdictions.⁴⁰

Family law. Family law is usually included in the private law register. It essentially consists of the law of marriage and divorce, custody, adoption, and succession. Here, all scholars agree that traditional family law has been least upset in the modern Middle East by Western

³⁷ See the "Civil Code" entry in *Encyclopaedia Iranica* (Yeganeh 1991). There is no serious trace of TP in the making of the Iranian code; the main treatises are by Katuzian (1975, 1994) and Safa'i (2003).

³⁸ French and Arabic commentaries on Morocco's civil code by Blanc & Zeidguy (1983) betray the heavy influence of French civil law despite the originally Islamic language of the code.

³⁹ The decisions of Ottoman judge Tamer al-Mallat [(d. 1914) 1999] are an example from this legacy.

⁴⁰ Two remarkable but insufficient books are Ziadeh (1979), which is too short, and Makdisi (2005), which is a substantive case-law book in the American tradition, with many translations of classical *fiqh* texts but scant reference to case law from the Middle East.

law. Evidence is generally twofold. The many family law codes (also known as personal status, *ahwal shakhsiyya* in Arabic), which have become national points of reference of the various countries, have retained the legal substance of the premodern age, most evidently polygamy, repudiation, and the distribution shares in succession law (e.g., in French and English, Bellefonds 1965–1973, Coulson 1971, Mallat & Connors 1990, Mir-Hosseini 1993, Najjar 1997, and Welchman 2007; in Arabic, ‘Abdallah 1965 and Khamlishi 1994; and in Persian, Ja‘fari Langarudi 1977). Courts, when in doubt, defer to the classical texts.⁴¹ Yet codification of marriage and succession law since the second decade of the twentieth century shows a persistent trend that seeks gender equality against a classical system that had no consideration for it. The philosophy of reform, whether procedural or substantive, cannot be understood outside legislative and judicial efforts throughout the twentieth century to enhance the legal position of women (Mallat 2007, pp. 356–402).

Criminal law. Is criminal law public or private law? In Western legal systems, it tends to carve its own niche in between, and the niche is large enough not to raise too many concerns for legal taxonomy. Whether it is considered part of private or public law, criminal law is often treated as a separate domain of law entirely. All states in the Middle East deal with criminal procedure through a Western-style prosecutor or attorney general, even if both the person accused of murder and the victim’s family are private parties.⁴² There was a time in Middle

Eastern law, which persists in some forms today (Stewart 1987), when the tribe or the neighborhood exercised a collective punishment and/or reparation, but this is the exception rather than the rule.

In the twenty-first century, no state can afford to abdicate its lead role in criminal law. Nor is there place for “an eye for an eye” rule condoning private vengeance, although monetary compensation in the form of *diyya* (blood money payments) survives as one way to lessen the grief of the murdered victim’s family.⁴³ This rare practice tends to be studied under tribal law, even if that category is not quite accurate.⁴⁴ As for other penalties, few are the countries in the Middle East that stipulate for the thief’s hand to be cut and for the adulteress to be lashed or stoned. When such practices survive, or when they get revived, they are overwhelmingly subject to domestic and heightened international scrutiny over concerns that such deliberately provocative use of criminal retribution constitutes a crude violation of human rights and principles of due process.⁴⁵ In harsh punitive penal systems such as Saudi Arabia or Iran, where these punishments continue to be meted out, criminal lawyers must contend with arbitrary and inconsistent state practices. The most accurate picture of criminal law practice, and a necessarily fragmented one, is best found in reports by Amnesty International and Human Rights Watch. Crime is a daily fact of life in all societies; only degrees vary—but the niche for the criminal lawyer in the Middle East tends to be inversely small when compared

⁴¹ Examples are a reference to Maliki scholar Khalil (d. 1374) in the case law of Moroccan courts (Moroccan Supreme Court 1988) and references to Shafi‘i and others by the Egyptian Supreme Constitutional Court (1993, p. 285).

⁴² The picture of criminal law in classical Islam is murky because of the fluid system of police/prosecution and the absence of a consistent set of court decisions. For a full capital punishment decision from Ottoman Syria in 1668, see Ziadeh (1983, pp. 88–90). Of note in recent scholarship is Peters (2006). On the place of the prosecutor in two Middle Eastern countries, see Hill (1979) (Egypt) and Messick (1983) (Yemen).

⁴³ An example is the “nurses” case in Saudi Arabia; there is no case report available, but the argument of the defense was published (see Hejailan 1996).

⁴⁴ The late Norman Calder (1993, p. 207) has persuasively shown that *diyya* law was a characteristic of the city.

⁴⁵ A typical example is former Sudan’s dictator Ja‘far al-Nimeiry invoking Islamic law to execute Muhammad Mahmud Taha in 1985. Taha was an Islamic scholar advocating a rational and enlightened expression of religion for the country (an-Na‘im 1990). Nimeiry’s successor, Omar al-Bashir, author of massive crimes against humanity in Darfur and across the country, offers another variation on Caligula-like cruelty, invoking Islamic law when he pleases.

with the importance of the discipline. He often operates in a legal system that has no interest in due process or fundamental human rights in the first place.

Public Law

Administrative law. A small proportion of Middle Eastern lawyers earn their living from litigation in administrative law. In more common law-inspired countries, such as Pakistan and Israel, an administrative chamber remains part of a unified court system. In the majority of countries where the French legacy survives, directly or indirectly through Egypt's legal tradition, administrative law is adjudicated by a separate court system akin to the Conseil d'État (called *majlis al-shura* in Lebanon, *majlis al-dawla* in Egypt, and *diwan al-mazalem* in Saudi Arabia). This staple of the French system is based on the idea that the state (or its agencies) cannot be dealt with as private individuals or corporations and that it deserves its own dedicated judge and protective rules. As the halo of state immunity recedes, the government is increasingly involved in economic matters, and it intervenes daily in the lives of private citizens through expropriation of property for public use, administrative contracts and subcontracts, and taxes. In the disputes in which the state is party, the administrative lawyer stands for the aggrieved citizen. The administrative judge does not exactly apply the rules of private law as if the state were acting as a private party, and with the proliferation of water, environmental, and social security agencies, administrative law compels its own special expertise.

Constitutional law. Last but not least is constitutional law. There is little constitutional law practice, and few dedicated constitutional lawyers exercise their skills in the Middle East, but the field is important in many other respects. Until the revolution swept the region in 2011, constitutional law was developing around newly established constitutional courts and councils. Some followed the French-style

Conseil Constitutionnel, which looks into a law within a short period after its promulgation, on the request of a limited number of officials, typically a minority of parliamentarians. Variations on the French model (itself modified in France in 2010 to allow citizens a right of review) can be found in Iran, where the *shuray-e negabban* (the Council of Guardians) reviews every statute passed by parliament for its conformity with the constitution and/or Islamic law; in Lebanon, where it is also open to religious community leaders for matters within their prerogatives; and in the former French colonies of North Africa (Algeria, Tunisia, and Morocco). The other model is closer to the US Supreme Court and allows constitutional review of a law on the occasion of a "case or controversy" involving a citizen who claims that her constitutional right was harmed by a given statute. In that model, a constitutional case is open to the citizen, but various procedural hurdles prevent the flooding of the courts. The best-known court in this style is the Egyptian Supreme Constitutional Court, and the most heroic is the Supreme Court of Pakistan, which ended the dictatorship of the military ruler and has since forced the resignation of the sitting prime minister. Not surprisingly, both have been the subject of great attention in the region and worldwide and, together with the expanded constitutional writ of the Israeli Supreme Court, have paved the way for the birth of the Middle Eastern constitutional lawyer (see, e.g., for Egypt, Brown 1997, Bernard-Maugiron 2003, Ginsburg & Moustafa 2008; for Pakistan, Munir 2009, Harvard Law Rev. Board Ed. 2010; and for Israel, Lahav 1997, Barak 2002, Sultany 2003).

EPILOGUE: LAW IN THE MIDDLE EAST NONVIOLENT REVOLUTION (ca. 2011)

Constitutional law is not only about litigation, and constitution making got a new lease on life in 2011. What happened in 2011 to the Middle East and to Middle Eastern law? In the hackneyed response, "it is too

early to tell,” and it is already hard to follow the books that have emerged on the Arab Spring. Jean-Pierre Filiu (2011a,b) offers a solid overview of the 2011 turmoil, in French and in English.

In a revolution, politics dominate, and the legal prism is limited. Still, constitutional reform is a pressing necessity for regimes on the defensive, and the revolutionaries find it imperative to mark the end of a dictatorship with a constitution they write to make a clean break with the former regime. This is the case of Egypt, Tunisia, Libya, and Yemen, where dictators were removed by revolution. It is also the case in several other countries—Syria, Oman, Morocco, Jordan, and Algeria—whose rulers reformed their constitutions for fear of the revolutionary tide sweeping the region. The constitutional moment raises some vexing questions. Some are procedural: Who is to write the constitution, a specially elected assembly or a committee appointed by whoever appears to be in charge? How does the constitution get written and at what pace, and how does it get formally enacted? Some are substantive: Should there be a presidential or parliamentary system? Should the government be centralized or federal? What is the place of Islamic law in the constitution? And how does the religious-sectarian composition of the population find its balance in the constitution and the government it gives legitimacy to? What are the composition and role of a constitutional court? (See C. Mallat, unpublished manuscript entitled *Philosophy*

of Nonviolence: Revolution, Constitutionalism and Justice in the Middle East, part II.)

Law is central to the ongoing Middle East Revolution in another major way: the judicial accountability of the deposed leader and his aides. Trials are afoot across the region. They give rise to immense political passion, and the fine points of procedure and exigencies of due process are at risk of getting trumped by populist demands for justice or the survival of cronies of the former regime. In addition to the criminal dimension of the trials, how do the fortunes made by former rulers and their families get tracked down the world over and reallocated to support much-needed social and economic reforms? And how does one compensate the victims of years of repression? (See C. Mallat, unpublished manuscript entitled *Philosophy of Nonviolence: Revolution, Constitutionalism and Justice in the Middle East*, part III.)

In 2013, amid all the uncertainties, one prediction is possible. The political chain reaction that started with the flight of the Tunisian dictator on January 14, 2011, will affect law significantly, as the common request of all revolutionaries who unite to remove their dictators from power is for dignity, human rights, and democracy. Some of this joint dynamic across the Middle East may find better expression in a new constitution. But revolutionary unity is always temporary, and the yearning for better law is also bound to give way to a scramble for power, petty scheming, and the morass of everyday politics.

DISCLOSURE STATEMENT

The authors are not aware of any affiliations, memberships, funding, or financial holdings that might be perceived as affecting the objectivity of this review.

LITERATURE CITED⁴⁶

- ‘Abdallāh ‘U. 1965. *Abkām al-marwāriṭh fil-sbarī’a al-islāmiyya* [Succession rules in Islamic law]. Cairo. 4th ed.
 ‘Abidin Ibn M. 1994. *Radd al-muḥtār ‘alā al-durr al-mukhtār*. Beirut: Dār al-Kutub al-‘ilmīyah

⁴⁶ *Note to reader.* Diacritics for Middle East languages follow the common use in specialized journals. The entry ignores “al” (e.g., Sarakhsī, not al-Sarakhsī). This is also the case for names including “ibn” (e.g., entry is Khaldūn, ibn, not ibn Khaldūn). The titles of classical law textbooks are not translated, as they tend not to relate to content (Kāsānī’s *Badā’e’ al-ṣanā’e’* would translate as “the most beautiful confections”). Modern titles are more precise, and their translation is provided. Middle Eastern books sometimes lack date (n.d.), place, or publisher.

- ‘Abidīn Ibn M. n.d. *Majmū‘at rasā‘el* [Collected treatises], 2 vols. Beirut: Mu‘assasat Fu‘ad
- Ackerman B. 1997. The rise of world constitutionalism. *Va. Law Rev.* 83:771–97
- Ackerman-Lieberman P. 2007. *A partnership culture: Jewish economic and social life seen through the legal documents of the Cairo Geniza*. PhD Thesis, Princeton Univ., Princeton, NJ
- Arslān S. 1939. *Li-mādā taahhara al-muslimūn?: wa-limādā taqaddama ġairubum?* [Why are Muslims lagging behind and others have forged ahead?]. Cairo: ‘Īsā al-Bābī al-Ĥālābī
- ‘Asālī K al-, ed. 1983–1989. *Wathā‘eq maqdisiyya tārikhiyya* [Historical Jerusalemite documents], 3 vols. Amman, Jordan: Tawfiq
- ‘Assāl Ibn al-. 1908. *al-Majmū‘ al-safawī*, ed. JF ‘Awad. Cairo
- Bahr al-‘Ulūm H. 2004. *Mujtama‘ al-lā‘unf: dirāsah fī wāqi‘ al-ummah al-Islāmiyya* [The nonviolent society: study in the reality of the Islamic community]. Beirut: Dār al-Zahrā’
- Bahr al-‘Ulūm H. 2010. *Al-Islām wal-fidāliyya* [Islam and federalism]. Baghdad: Glob. Justice Proj. Iraq
- Bahr al-‘Ulūm M. 1964. Al-dirāsa wa tārikhuhā fil-najaf [Studies and the history of education in Najaf]. In *Mawsū‘at al-‘atabāt al-muqaddasa, qism al-najaf* [Encyclopaedia of the Shi‘i holy places], ed. J al-Khalīlī. Beirut
- Bahrānī Y al-. 1985. *Al-Ḥadā‘iq al-nāḍirat, fī ahkām al-‘itrat al-tābirat*. Beirut: Dar al-Adwa’
- Barak A. 2002. Foreword: a judge on judging: the role of a supreme court in a democracy. *Harvard Law Rev.* 116:19–27
- Baumgarten AI. 1997. *The Flourishing of Jewish Sects in the Maccabean Era: An Interpretation*. New York: Brill
- Bāz S. 1923 (1888). *Sharḥ al-Majalla*. Beirut: al-Matba‘a al-Adabiyya
- Bellefonds YL de. 1965–1973. *Traité de droit musulman comparé*, 3 vols. Paris: Mouton
- Berman P. 2010. Towards a jurisprudence of hybridity. *Utah Law Rev.* 1:11–20
- Bernard-Maugiron N. 2003. *Le politique à l’épreuve du judiciaire: La justice constitutionnelle en Egypte*. Brussels: Bruylant
- Bhala R. 2011. *Understanding Islamic Law: Sharī‘a*. New Providence, NJ: LexisNexis
- Blachère R. 1949–1951. *Le Coran*. Paris: Maisonneuve
- Blanc FP, Zeidguy R. 1983. *Dabir formant Code des obligations et contrats: Edition synoptique franco-arabe*. Casablanca, Moroc.: Sochepress
- Brown NJ. 1997. *The Rule of Law in the Arab World: Courts in Egypt and the Gulf*. Cambridge, UK: Cambridge Univ. Press
- Brown PR. 1978. *The Making of Late Antiquity*. Cambridge, MA: Harvard Univ. Press
- Bruns KG, Sachau E, eds. 1961 (1880). *Syrisch-Römisches Rechtsbuch aus dem fünften Jahrhundert*. Aalen, Ger.: Scientia
- Calder N. 1993. *Studies in Early Muslim Jurisprudence*. Oxford, UK: Clarendon
- Cannon B. 1988. *Politics of Law and the Courts in Nineteenth-Century Egypt*. Salt Lake City: Univ. Utah Press
- Chalmeta Gendró P. 1973. *El “señor del zoco” en España: edades media y moderna: contribución al estudio de la historia del mercado*. Madrid: Inst. Hisp.-Arabe Cult.
- Cole J. 2002. *Sacred Space and Holy War: The Politics, Culture and History of Shi‘ite Islam*. London: I.B. Tauris
- Coulson N. 1971. *Succession in the Muslim Family*. Cambridge, UK: Cambridge Univ. Press
- Crone P. 1987. *Provincial and Islamic Law*. Cambridge, UK: Cambridge Univ. Press
- Dabbah M. 2007. *Competition Law and Policy in the Middle East*. Cambridge, UK: Cambridge Univ. Press
- Dam IA al-. 1987. *Kitāb adab al-qadā’* [The book of the ways of judgship]. Beirut
- Deleuze G, Guattari F. 1980. *Mille Plateaux*. Paris: Éd. Minuit
- Driver GR, Miles JC. 1952. *The Babylonian Laws*. Oxford, UK: Clarendon
- Ebied RY, Young ML, eds. 1975. *Some Arabic Legal Documents of the Ottoman Period*. Leiden, Neth.: Brill
- Egyptian Supreme Constitutional Court [al maḥkama al-dustūriyya al-‘ulyā]. 1993. Decision of May 19, 1993. *Supreme Const. Court Decis.* (in Arabic). 5(2):260–90
- Feldman N. 2008. *The Fall and Rise of the Islamic State*. Princeton, NJ: Princeton Univ. Press
- Filiu J. 2011a. *La révolution arabe: Dix leçons sur le soulèvement démocratique*. Paris: Fayard
- Filiu J. 2011b. *The Arab Revolution: Ten Lessons from the Democratic Uprising*. Berkeley: Univ. Calif. Press
- Gerber H. 1994. *State, Society, and Law in Islam: Ottoman Law in Comparative Perspective*. Albany: State Univ. N.Y. Press

- Ghannūshī R. 1993. *Al-Hurriyyāt al-‘Amma fil-Islam* [Public freedoms in Islam]. Beirut: Markaz Dirasat al-Wahda al-‘Arabiya
- Ghannūshī R. 2012. *Al-Dīmuqrāṭiyyah wa-ḥuqūq al-insān fil-Islām* [Democracy and human rights in Islam]. Beirut: al-Dār al-‘Arabiyyah lil-‘Ulūm
- Ginsburg T, Moustafa T. 2008. *Rule by Law: The Politics of Courts in Authoritarian Regimes*. Cambridge, UK: Cambridge Univ. Press
- Gleave R. 2007. *Scripturalist Islam: The History and Doctrines of the Akbbari Shi‘i School*. Leiden, Neth.: Brill
- Goitein SD. 1960. The birth-hour of Muslim law. *Muslim World* 50:23–29
- Goitein SD. 1967–1988. *A Mediterranean Society: The Jewish Communities of the Arab World as Portrayed in the Documents of the Cairo Geniza*, 5 vols. (plus index). Berkeley: Univ. Calif. Press
- Goldziher I. 1971 (1884). *The Zabiris: Their Doctrine and Their History*, transl. W Behn. Leiden, Neth.: Brill
- Grabar O. 1984. *The Illustrations of the Maqāmat*. Chicago: Univ. Chicago Press
- Hallaq B. 2009. *Shari‘a: Theory, Practice, Transformations*. New York: Cambridge Univ. Press
- Harvard Law Rev. Board Ed. 2010. The Pakistani lawyers’ movement and the popular currency of judicial power. *Harvard Law Rev.* 123:1705–26
- Ḥaydar A. 1881. *Dürr-i üll-bukkām: şerh-i mecellet üll-abkām*. Istanbul: Mekteb-i Sanayi-i Şahane Matbaası
- Hecht NS, Jackson BS, Passamanek SM, Piattelli D, Rabello AM, eds. 1996. *An Introduction to the History and Sources of Jewish Law*. Oxford, UK: Oxford Univ. Press
- Heinrichs W. 2002. *Qawa‘id* as a genre of legal literature. In *Studies in Islamic Legal Theory*, ed. B Weiss. Leiden, Neth.: Brill
- Hejailan S. 1996. Defence submission by Salah Ibrahim al-Hejailan in the case of Lucille McLaughlan and Deborah Kim Parry. *Yearb. Islam. Middle East. Law* 3:491–505
- Hill E. 1979. *Mabkama! Studies in the Egyptian Legal System*. London: Ithaca
- Hill E. 1993. Majlis al-Dawla: the administrative courts of Egypt and administrative law. In *Islam and Public Law*, ed. C Mallat, pp. 207–28. London: Graham & Trotman
- Hoffner HA. 1997. *The Laws of the Hittites: A Critical Edition*. Leiden, Neth.: Brill
- Hooper CH. 1933–1936. *The Civil Law of Palestine and Transjordan*, 2 vols. Jerusalem: Azriel
- Humphreys RS. 1991. *Islamic History: A Framework for Inquiry*. Princeton, NJ: Princeton Univ. Press
- Ibrahim H. 2012. *Practicing Shari‘ah Law: Seven Strategies for Achieving Justice in Shari‘ah Courts*. Chicago: Am. Bar Assoc.
- Imber C. 1997. *Ebu’s-su‘ud: The Islamic Legal Tradition*. Edinburgh, UK: Edinburgh Univ. Press
- İshāq ibn. 2004. *Al-Sīrah al-Nabawīyah li-ibn Ishāq*, ed. AF al-Mazīdī. Beirut: Dār al-kutub al-‘ilmiyyah
- Ja‘fari Langanūdi M. 1977. *Ḥuqūq-i khānīwādab* [Rights of the family]. Tehran, Iran: Haidari
- Jennings R. 1999. *Studies on Ottoman Social History in the Sixteenth and Seventeenth Centuries*. Istanbul: Istanbul Books
- Johansen B. 1999. *Contingency in a Sacred Law: Legal and Ethical Norms in the Muslim Fiqh*. Leiden, Neth.: Brill
- Johansen B. 2006. Le contrat salam: Droit et formation du capital dans l’empire abbasside (XIe et XIIe siècle). *Ann. Hist. Sci. Soc.* 61(4):863–99
- Jokisch B. 2007. *Islamic Imperial Law: Harun-Al-Rashid’s Codification Project*. Berlin: De Gruyter
- Joubair A, ed. 1991. *Kitāb al-budā*. Kaslik, Leban. 2nd ed.
- Kamali MH. 2008. *Shari‘ah Law: An Introduction*. Oxford, UK: Oneworld
- Karo J. 1954 (ca. 1567). *Code of Hebrew Law. Shulban ‘aruk*, transl. CN Denburg. Montreal: Jurisprudence
- Karo J. 1982. *The Traditional Jewish Law of Sale: Shulban arukh, Hoshen mishpat, Chapters 189–240*, transl. S Passamanek. Cincinnati, OH: Hebrew Union Coll. Press
- Kāsānī ‘A al-. 1910. *Badā‘e’ al-ṣanā‘e’ fi tartīb al-sharā‘e’*, 7 vols. Cairo
- Kātūziān N. 1975. *Ḥuqūq-i madanī: Qawā‘id-i ‘umūmī-yi qarūrdādhā* [Civil law, general rules], 5 vols. Tehran, Iran: Islamiyih
- Kātūziān N. 1994. *Ḥuqūq-i madanī: ‘Uqūd-i mu‘ayyan*, [special contracts], 3 vols. Tehran
- Kaufhold H. 1985. Über die Entstehung der Syrischen Texte zum Islamischen Recht. *Oriens Christ.* 69:54–72
- Khadduri M. 1987 (1961). *ar-Risāla fi ūṣūl al-fiqh: Treatise on the Foundations of Islamic Jurisprudence*. Baltimore, MD/Cambridge, UK: Cambridge Univ. Press
- Khadduri M, Liebesny H, eds. 1955. *Law in the Middle East*. Washington, DC: Middle East Inst.

- Khaldūn Ibn A. 1978. *Al-Muqaddima*. Beirut: Dar al-Qalam
- Khallāf AW. 1956. *ʿIlm uṣūl al-fiqh* [Jurisprudence]. Cairo: Matbaʿat al-Nasr. 7th ed.
- Khamlishī A. 1994. *al-Taʿliq ʿalā qānūn al-aḥwāl al-shakṣiyya* [Commentary on the law of personal status]. Rabat, Maroc.: Dār Nashr al-Maʿrifah
- Khan G. 1993. *Arabic Legal and Administrative Documents in the Cambridge Genizah Collections*. Cambridge, UK: Cambridge Univ. Press
- Kuran T. 2011. *The Long Divergence: How Islamic Law Held Back the Middle East*. Princeton, NJ: Princeton Univ. Press
- Lahav P. 1997. *Judgment in Jerusalem*. Berkeley: Univ. Calif. Press
- Liebesny H. 1975. *The Law of the Near and Middle East: Readings, Cases and Materials*. Albany: State Univ. N.Y. Press
- Little D. 1984. *A Catalogue of the Islamic Documents from al-Haram al-Sharif in Jerusalem*. Beirut: Orient-Inst. DMG
- Mahan AT. 1902. The Persian Gulf and international relations. *Natl. Rev.* 6:38–39
- Maimonides [Maimūn Ibn]. 1949–1982 (ca. 1180). *Mishneh Torah*, 14 vols. New Haven, CT: Yale Univ. Press
- Makdisi J. 2005. *Islamic Property Law: Cases and Materials for Comparative Analysis with the Common Law*. Durham, NC: Carolina Acad.
- Mallat C. 1993. *The Renewal of Islamic Law: Mubammad Baqer as-Sadr, Najaf and the Shi'i International*. Cambridge, UK: Cambridge Univ. Press
- Mallat C. 2007. *Introduction to Middle Eastern Law*. Oxford, UK: Oxford Univ. Press
- Mallat C, Connors J, eds. 1990. *Islamic Family Law*. London: Graham & Trotman
- Mallāṭ T al-. 1999. *Aḥkām* [Judgments]. Beirut
- Manning J. 2003. Demotic law. In *A History of Ancient Near Eastern Law*, Vol. 2, ed. R Westbrook, pp. 819–62. Leiden, Neth.: Brill
- Marcus A. 1989. *The Middle East on the Eve of Modernity: Aleppo in the Eighteenth Century*. New York: Columbia Univ. Press
- Martinez L. 2010. *Violence de la rente pétrolière: Algérie, Lybie, Irak*. Paris: Presses SciencesPo
- Marwazī M ibn M al-. n.d. *al-Kāfi*. Manuscr. 4263, Chester Beatty Libr., Dublin
- Masud M, Messick B, Powers D, eds. 1996. *Islamic Legal Interpretation: Muftis and Their Fatwas*. Cambridge, MA: Harvard Univ. Press
- Messick B. 1983. Prosecution in Yemen: the introduction of the *niyaba*. *Int. J. Middle East Stud.* 15:507–18
- Milād S. 1974. Registres judiciaires du tribunal de la Salihyya Naqmiyya. *Ann. Islam.* 13:161–243
- Milād S. 1976. *Al-Arsḥif: māhiyatubu wa-idāratub* [Archive: nature and management]. Cairo: Dār al-Thaqāfah
- Minist. Justice (Egypt). 1949. *Al-Qānūn al-madani, Majmūʿat al-aʿmāl al-taḥḍiriyya* [Travaux préparatoires of the Civil Code], 7 vols. Cairo: Minist. Justice
- Mir-Hosseini Z. 1993. *Marriage on Trial: A Study of Islamic Family Law, Iran and Morocco Compared*. London: I.B. Tauris
- Modarressi H. 1983. *Kharāj in Islamic Law*. London: Anchor
- Modi JJ, Anklesaria TD, eds. 1901–1913. *Lawbook of a Thousand Decisions*, 2 parts. Pune, India/Bombay, India
- Modrzejewski JM. 1997. *Les Juifs d'Egypte de Ramsès II à Hadrien*. Paris: Presses Univ. Fr.
- Morcos [Murqūš] S. 1964–1967. *Sharḥ al-qanūn al-madani* [Commentary on civil law], 2 vols. Cairo: Jāmiʿat ad-Duwal al-ʿArabiyya
- Moroccan Supreme Court [al-mamlaka al-maghribiyya, al-majlis al-aʿā]. 1988. Decision of January 28, 1986. *al-Majalla al-ʿarabiyya lil-fiqh wal-qadāʾ* [The Arab journal of jurisprudence and courts]. 8:141–44
- Muffs Y. 2003. *Studies in the Aramaic Legal Papyri from Elephantine*. Leiden, Neth.: Brill
- Munir D. 2009. Struggling for the rule of law: the Pakistani lawyers' movement. *Middle East Rep.* 251:37
- Nahal G. 1979. *The Judicial Administration of Ottoman Egypt in the Seventeenth Century*. Minneapolis, MN: Bibl. Islam.
- Naʾim A an-. 1990. *Toward an Islamic Reformation: Civil Liberties, Human Rights, and International Law*. Syracuse, NY: Syracuse Univ. Press
- Najjar I. 1997. *Droit matrimonial: Successions*. Beirut: Hassib Dergham et Fils. 2nd ed.
- Nallino C. 1942. *Raccolta di scritti editi e inediti*, Vol. 4: *Diritto musulmano e diritti orientali cristiani*. Rome: Ist. Oriente

- Naqābat al-Muhāmīn [Bar assoc.]. 1992. *Al-mudbakkirāt al-īdāhiyya lil-qānūn al-madanī al-urdunī* [Explanatory memoranda of the Jordanian civil code], 2 vols., ed. I Abūrāhmeh. Amman, Jordan. 3rd ed.
- Newman A. 1992. The nature of the *Akkbārī/Ūṣulī* dispute in late *Ṣafavid* Iran. *Bull. Sch. Oriental Afr. Stud.* 55(1):22–51; 55(2):250–61
- Noeldeke T. 1909–1938. *Geschichte des Qorans*. Leipzig, Ger.: Dieterich
- Nujaym Ibn Z. 1893. *Al-baḥr al-rāʿeq fi sharḥ kanz al-daqaʿiq*, 8 vols. Cairo: al-Matbaʿa al-ʿIlmiyya
- Perikhanian A. 1970. Iranian society and law. In *Cambridge History of Iran*, Vol. 3(2): *The Seleucid Parthian and Sasanian Periods*, ed. E Yarshater, pp. 627–80. Cambridge, UK: Cambridge Univ. Press
- Peters R. 2006. *Crime and Punishment in Islamic Law: Theory and Practice from the Sixteenth to the Twenty-First Century*. Cambridge, UK: Cambridge Univ. Press
- Postgate JN. 1992. *Early Mesopotamia: Society and Economy at the Dawn of History*. London: Routledge
- Price R, Tamimi E. 1998. *United Arab Emirates Court of Cassation Judgments, 1989–1997*. The Hague, Neth.: Kluwer Law Int.
- Price R, Tamimi E. 2005. *United Arab Emirates Court of Cassation Judgments, 1998–2003*. Leiden, Neth.: Brill
- Qarāʿalī A. 1959. *Mukhtaṣar al-sharīʿa*. Beirut: Al-Matbaʿah al-Kathūlikīyya
- Qaraḍāwī Y al-. 1974. *Al-Ḥalāl wal-ḥarām fil-islām* [The lawful and the prohibited in Islam]. Cairo: Dār al-Iʿtishām. 8th ed.
- Qārī AA al-. 1981. *Majallat al-ahkām al-sharʿiyya*, ed. AI ʿSuleimān, MA Aḥmad. Jeddah, Saudi Arab.: Tihama
- Rabb IA. 2010. Islamic legal maxims as substantive canons of construction: *Ḥudūd*-avoidance in cases of doubt. *Islamic Law Soc.* 17:63–125
- Rajab Ibn. 1988. *al-Qawāʿid*, ed. S Ṭāha. Beirut: Dar al-Bayan. 2nd ed.
- Raymond A. 1973–1974. *Artisans et commerçants au Caire au XVIIIème siècle*, 2 vols. Damascus, Syr.: Inst. fr. Damas
- Repp RC. 1986. *The Müfti of Istanbul*. London: Ithaca
- Rohe M. 2009. *Das islamische Recht—Geschichte und Gegenwart*. Munich: Beck
- Rosen L. 1989. *The Anthropology of Justice: Law as Culture in an Islamic Society*. Cambridge, UK: Cambridge Univ. Press
- Roth M. 1998. Law and gender: a case study from ancient Mesopotamia. In *Gender and Law in the Hebrew Bible and the Ancient Near East*, ed. V Matthews, B Levinson, T Frymer-Kensky, pp. 173–84. Sheffield, UK: Sheffield Acad.
- Saab G. 1967. *The Egyptian Agrarian Reform: 1952–1962*. London: Oxford Univ. Press
- Ṣadr MB al-. 1964. *Al-maʿālīm al-jadīda lil-uṣūl* [The new configuration of *uṣūl*]. Beirut: Dar Al-Taʿaruf Lil-Nashr
- Ṣadr MB al-. 1969. *Al-bank al-lā ribawī fil-Islām* [Interest-free bank in Islam]. Kuwait
- Ṣafāʾī H. 2003. *Ḥuqūq-i madanī* [Civil law], 2 vols. Tehran, Iran: Intishārāt-i Dānishgāh-i Tihrah
- Said E. 1978. *Orientalism*. London: Routledge & Kegan Paul
- Ṣalāḥ Ibn al-. 1984. *Muqadimma fi ʿulūm al-ḥadīth* [Introduction to the science of Hadith]. Damascus, Syr.: Dar al-Fikr
- Ṣalāḥ Ibn al-. 1986. *Adab al-muftī wal-mustafī*. Beirut: ʿAlam al-Kutub
- Saleh N. 1993. Civil codes of Arab countries: the Sanhuri codes. *Arab Law Q.* 8:161–67
- Saleh S. 1995. *Commercial Agency and Distributorship in the Arab Middle East: A Study in Sharīʿa and Statute Law*. London: Graham & Trotman
- Sanhūrī AR al-. 1952–1970. *Al-Waṣīṭ fi sharḥ al-qānūn al-madanī al-jadīd* [Medium commentary on the new civil code], 12 vols. Cairo: Dār Iḥyā at-Turāt al-ʿArabī
- Sanhūrī AR al-. 1954–1959. *Maṣādir al-ḥaqq fi al-fiqḥ al-islāmī* [Sources of law in Islamic law], 6 vols. Cairo: Jāmiʿat ad-Duwal al-ʿArabiyya, Maʿhad ad-Dirāsāt al-ʿArabiyya al-ʿĀliya
- Santillana D. 1899. Code civil et commercial tunisien: Avant-projet discuté et adopté au rapport de D. Santillana. Tunis, Tunisia: Comm. Codif. Lois Tunis.
- Sarakhsī SD al-. 1909. *al-Mabsūṭ*, 30 vols, ed. A Yūsuf. Cairo
- Schacht J. 1950. *The Origins of Mubammadan Jurisprudence*. Oxford, UK: Oxford Univ. Press
- Schacht J. 1957. *Droit byzantin et droit musulman*. Rome: Accad. Naz. Lincei
- Schacht J. 1964. *An Introduction to Islamic Law*. Oxford, UK: Oxford Univ. Press

- Schlesinger RB, Mattei U, Ruskola T, Gidi A. 2009. *Schlesinger's Comparative Law: Cases, Text, Materials*. New York: Foundation. 7th ed.
- Selb W, Kaufhold H. 2002. *Das Syrisch-Römische Rechtsbuch*, 3 vols. Vienna: Österr. Akad. Wiss.
- Shāfi'ī A al-. 1903–1908. *al-Umm*, 7 vols. Cairo
- Shāfi'ī A al-. 1939. *al-Risāla*, ed. AM Shāker. Cairo
- Shahid I. 1984a. *Rome and the Arabs*. Washington, DC: Dumbart. Oaks
- Shahid I. 1984b. *Byzantium and the Arabs in the Fourth Century*. Washington, DC: Dumbart. Oaks
- Shaybānī M. 1990 (AH 1386/1966). *Kitāb al-Aṣl*, ed. AW al-Afghānī. Beirut: 'Ālam al-Kutub.
- Shbārū 'I. 1982. *Al-qādā' wal-quḍāt fil-islām* [The judiciary and judges in Islam]. Beirut: Dar al-Nahda al-'Arabiyya
- Sluglett P, Farouk-Sluglett M. 1984. The application of the 1858 land code in greater Syria: some preliminary observations. In *Land Tenure and Social Transformation in the Middle East*, ed. T Khalidi, pp. 409–21. Beirut: Am. Univ. Beirut
- Surūsh AK. 1991. *Qabz va baṣṭ-i ti'ūrīk-i shari'at: nazāriyab-ī takāmul-i ma'rīfat-i dīnī*. Tehran, Iran: Mu'assasah-i Farhangī-i Širāt
- Stewart FH. 1987. Tribal law in the Arab world: a review of the literature. *Int. J. Middle East Stud.* 19:473–90
- Stilt K. 2011. *Islamic Law in Action: Authority, Discretion, and Everyday Experiences in Mamluk Egypt*. New York: Oxford Univ. Press
- Stolte B. 2008. Justice: legal literature. In *The Oxford Handbook of Byzantine Studies*, ed. E Jeffreys, J Haldon, R Cormack, pp. 691–98. Oxford, UK: Oxford Univ. Press
- Sultany N. 2003. *Citizens Without Citizenship*. Haifa, Isr.: Mada al-Carmel: Arab Cent. Appl. Soc. Res.
- Tadmūrī 'U, Ma'tūq F, Ziādeh K, eds. 1982. *Wathā'eq al-maḥkama al-shari'iyya bi-ṭarablus* [Documents of the shar'i court of Tripoli]. Tripoli. Facsim. ed.
- Ṭallā' I al-. 1978. *Aqḍiyat Rasūl Allāh* [Judgments of the Prophet]. Cairo: Dār al-Kitāb al-Miṣri
- Terré F, ed. 2001. *L'Américanisation du droit*. Paris: Dalloz
- Tucker J. 1998. *In the House of the Law: Gender and Islamic Law in Ottoman Syria and Palestine*. Berkeley: Univ. Calif. Press
- Tyan E. 1945. Le notariat et le régime de la preuve par écrit dans la pratique du droit musulman. *Ann. l'École Fr. Droit Beyrouth* 2:3–99
- Tyan E. 1960 (1938–1943). *Histoire de l'organisation judiciaire en pays d'Islam*. Leiden, Neth.: Brill
- Tzadua P, ed. 1968. *Fetba Negest*. Addis Ababa, Ethiop.: Fac. Law, Haile Sellassie I Univ.
- Udovitch A. 1970. *Partnership and Profit in Medieval Islam*. Princeton, NJ: Princeton Univ. Press
- Van der Auweraert P. 2009. Policy challenges for property restitution in transition—the example of Iraq. In *Reparations for Victims of Genocide, War Crimes and Crimes Against Humanity*, ed. C Ferstman, M Goetz, A Stephens, pp. 459–82. Leiden, Neth.: Martinus Nijhoff
- Vermes G. 1995. *The Dead Sea Scrolls*. London: Penguin. 4th ed.
- Wakī', MK. 1947–1950. *Akbbār al-quḍāt* [Stories of judges], 3 vols. Cairo: Maṭba'at al-Istiḳāmah
- Wakin J. 1972. *The Function of Documents in Islamic Law*. Albany: State Univ. N.Y. Press
- Wansbrough J. 1977. *Quranic Studies: Sources and Methods of Scriptural Interpretation*. Oxford, UK: Oxford Univ. Press
- Wansbrough J. 1978. *The Sectarian Milieu: Content and Composition of Islamic Salvation History*. Oxford, UK: Oxford Univ. Press
- Waqidi M. 1966. *The Kitāb al-maghazi of al-Waqidi*, ed. M Jones. London: Oxford Univ. Press
- Warde I. 2000. *Islamic Finance in the Global Economy*. Edinburgh, UK: Edinburgh Univ. Press
- Wasserstein B. 2001. *Divided Jerusalem: The Struggle for the Holy City*. New Haven, CT: Yale Univ. Press
- Welchman L. 2007. *Women and Muslim Family Laws in Arab States: A Comparative Overview of Textual Development and Advocacy*. Amsterdam: Amsterdam Univ. Press
- Whitaker C. 2005. The Middle East Legal Studies Seminar: a brief history. *Yale J. Int. Law* 30:347–56
- Wilcke C. 2002. Der Kodex Urnamma (CU): Versuch einer Rekonstruktion. In *Riches Hidden in Secret Places: Ancient Near Eastern Studies in Memory of Thorkild Jacobson*, ed. Z. Abusch, pp. 291–333. Winona Lake, IN: Eisenbrauns
- Yaron R. 1988. *The Laws of Eshnunna*. Leiden, Neth.: Brill. 2nd ed.

- Yeganeh N. 1991. Civil code. In *Encyclopaedia Iranica*, Vol. V, fasc. 6, pp. 648–50. London: Encycl. Iran.
 Found. <http://www.iranicaonline.org/articles/civil-code>
- Yergin D. 1992. *The Prize: The Epic Quest for Oil, Money and Power*. New York: Simon & Schuster
- Yūsuf A. 1979. *Kitāb al-kharāj*. Beirut: Dar al-Maʿrifah
- Ziādeh F. 1979. *Property Law in the Arab World*. London: Graham & Trotman
- Ziādeh K. 1983. *Al-ṣūra al-taqlīdiyya lil-mujtamaʿ al-madīnī* [The traditional image of urban society]. Tripoli, Libya
- Zuhaylī W al-. 1984. *al-Fiqh al-islāmī wa-adillatubu: al-shāmil lil-adilla al-sharʿiyya wal-āraʾ al-madbhahiyya* [Islamic law and its reasons: compendium of legal arguments and school opinions]. Damascus, Syr.



Contents

Growing Up in Law and Society: The Pulls of Policy and Methods <i>Richard Lempert</i>	1
Integrating Law and Health Policy <i>Sandra R. Levitsky</i>	33
The Legal and Political Legacy of Jeremy Bentham <i>Philip Schofield</i>	51
The Political Psychology of Counterterrorism <i>Aziz Z. Huq</i>	71
Legal Regulation of Health-Related Behavior: A Half Century of Public Health Law Research <i>Scott Burris and Evan Anderson</i>	95
The Adoption of Transparency Policies in Global Governance Institutions: Justifications, Effects, and Implications <i>Megan Donaldson and Benedict Kingsbury</i>	119
Law, Race, and Biotechnology: Toward a Biopolitical and Transdisciplinary Paradigm <i>Dorothy E. Roberts</i>	149
Niklas Luhmann's Theory of Autopoietic Legal Systems <i>Hugh Baxter</i>	167
Special Interests After <i>Citizens United</i> : Access, Replacement, and Interest Group Response to Legal Change <i>Samuel Issacharoff and Jeremy Peterman</i>	185
Militant Democracy: The Institutional Bases of Democratic Self-Preservation <i>Giovanni Capoccia</i>	207
The Regulation of Environmental Space <i>Steve Herbert, Brandon Derman, and Tiffany Grobelski</i>	227
Sex Laws and Sexuality Rights in Comparative and Global Perspectives <i>David John Frank and Nolan Edward Phillips</i>	249

The Justice Cascade: the Origins and Effectiveness of Prosecutions of Human Rights Violations <i>Kathryn Sikkink and Hun Joon Kim</i>	269
Is There a Canon of Law and Society? <i>Carroll Seron, Susan Bibler Coutin, and Pauline White Meeusen</i>	287
Motivated Cognition in Legal Judgments—An Analytic Review <i>Avani Mehta Sood</i>	307
Reproductive Justice <i>Zakiya Luna and Kristin Luker</i>	327
Sentenced to Life: Penal Reform and the Most Severe Sanctions <i>Marie Gottschalk</i>	353
Contextualizing Mass Atrocity Crimes: Moving Toward a Relational Approach <i>Susanne Karstedt</i>	383
Middle Eastern Law <i>Chibli Mallat and Mara Revkin</i>	405

Indexes

Cumulative Index of Contributing Authors, Volumes 1–9	435
Cumulative Index of Article Titles, Volumes 1–9	438

Errata

An online log of corrections to *Annual Review of Law and Social Science* articles may be found at <http://lawsocsci.annualreviews.org>